

GENERAL TERMS & CONDITIONS FOR SALE/LICENSING OF PRODUCTS, PARTS, AND/OR SERVICES – **DIGITAL SOLUTIONS**Mainland of People's Republic of China
(excluding Hong Kong, Macau and Taiwan)产品、零部件和/或服务销售/许可通用条款和条件-**数字化解决方案**

中国大陆（不包括香港、澳门和台湾）

NOTICE: Any sale/licensing of Products, Parts, and/or Services by Seller to Buyer is subject to these Terms and Conditions. Any additional or different terms proposed by Buyer are expressly objected to and shall not be binding upon Seller unless expressly accepted in writing by Seller's authorized representative. Any order for Products, Parts, and/or Services shall constitute acceptance of these Terms and Conditions.

注意：任何卖方向买方销售/许可产品、零部件和/或服务的行为均受限于本条款和条件。买方提出的任何对下列条款的增加或修改，除非经卖方授权代表以书面形式明确同意，均明确不予接受且对卖方不具有约束力。任何产品、零部件和/或服务的订单构成本条款和条件的接受。

1. DEFINITIONS – Capitalized terms not otherwise defined herein shall have the meanings set forth below. The following terms are applicable to both the singular and the plural and shall mean:

1. 定义 – 本合同中未另行定义的术语应具有下述规定的含义。以下术语在单数及复数情况下均应适用且其含义为：

“Affiliate” means for either party an entity (including without limitation any individual, corporation, partnership, limited liability company, association, or trust) that directly or indirectly controls, is controlled by, or is under common control with, such party. As used in this definition, “control” (including, with its correlative meanings, “controlled by” and “under common control with”) means: (a) ownership, directly or indirectly, of 50% or more of voting shares of the subject entity; or (b) the right to appoint a majority of the board of directors of the subject entity.

“关联方” 就任一方而言，指直接或间接控制该方、被该方控制或与该方处于共同控制之下的实体（包括但不限于任何个人、法人、合伙、有限责任公司、协会或信托）。本定义中，“控制”（包括其相关表述“被控制”和“处于共同控制之下”）指：(a) 直接或间接持有该实体 50% 或以上有表决权的股份；或 (b) 有权向该实体董事会委派多数董事。

“Applicable Data Protection Laws” means all data protection laws and regulations that apply to this Contract including but not limited to the Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation). For the purposes of this Contract the words “controller”, “data subject”, “personal data”, “personal data breach”, “processing”, “processor” have the meanings given in the Applicable Data Protection Laws.

“适用的数据保护法律”是指适用于本合同的所有数据保护法律和法规，包括但不限于欧洲议会和欧洲理事会 2016 年 4 月 27 日通过的关于保护自然人个人数据的处理以及此类数据的自由流通的法规第 2016/679 号欧盟条例（即《通用数据保护条例》）（该条例废止了 95/46/EC 指令）。就本协议而言，“控制者”、“数据主体”、“个人数据”、“个人数据泄露”、“处理”、“处理者”具有适用的数据保护法律中给定的含义。

“Applicable Law” means any law, statute, order, decree, rule, injunction, license, permit, consent, approval, agreement, regulation, interpretation, treaty, judgment, or legislative or administrative action of a competent governmental authority, which applies to the sale or provision of Products, Parts, and/or Services.

“适用法律”指适用于销售或提供产品、零部件和/或服务的任何法律、成文法、命令、法令、规则、禁令、许可、准许、同意、批准、协议、条例、解释、协定、判决或主管政府机关的立法或行政行为。

“Buyer” means the entity, its successors and permitted assigns purchasing any Products, Parts, and/or Services and/or licensing software from Seller.

“买方”指从卖方处购买任何产品、零部件和/或服务或获得软件许可的实体及其继受人和许可受让人。

“Buyer Taxes” means all existing and future taxes, duties, fees, and other charges of any nature (including, but not limited to, ad valorem, consumption, excise, franchise, gross receipts, import, export, license, property, sales and use, stamp, storage, tariffs, transfer, turnover, value-added taxes (“VAT”), or other similar taxes, and any and all items of deficiency, penalty, addition to tax, interest, or assessment related thereto), imposed or assessed by any governmental authority in connection with the execution of the Contract or performance of or payment for work hereunder, but excluding Seller Taxes.

“买方税款”指卖方税款之外的，由任何政府机关征收或评定的，与本合同签署相关的，或与履行本合同项下的工作相关的，或与支付本合同项下工作报酬相关的，现有及将来的所有税款、关税、费用和其他任何性质的收费（包括但不限于从价税、消费税、货物税、特许税、收入税、进口税、出口税、牌照税、财产税、销售和使用税、印花税、仓储费、关税、移转税、流转税、增值税或其他类似税款，以及任何及全部与之相关的缺额、罚款、税收附加、利息或估价）。

“Claims” means any and all claims, demands, causes of action, liabilities, damages, judgments, fines, penalties, awards, losses, costs, and expenses (including, without limitation, attorneys' fees and litigation costs) of any kind or character.

“索赔”是指任何种类或性质的任何及所有索赔、要求、案由、责任、赔偿、判决、罚款、处罚、裁决、损失、成本和费用（包括但不限于律师费和诉讼费用）。

“Consequential Loss” means, whether direct or indirect, whether or not foreseeable at the time of entering into the Contract or at the time of commencing performance, and any loss, delay or interruption of business, profits, revenue, production or opportunity; loss of product, use, or equipment; standby time; rig, vessel, or other facility or equipment downtime; cost of capital; cost of substitute goods, equipment, software, facilities, services, or replacement power; overhead; loss of data; loss of goodwill; any special, punitive, exemplary, incidental, and/or consequential damages or losses; and/or claims of a party's customers for any of the above losses, costs, or damages.

“间接损失”指任何直接或间接的，订立本合同之时或履行行为发生时可预见或不可预见的：任何业务、利润、收入、生产或机会的损失、延迟或中断；产品、使用或设备的损失；等待时间；装备、船舶或其他设施或设备的停机；资金成本；替代性货物、设备、软件、设施、服务或替代动力的成本；经常费用；数据丢失；商誉损失；任何特别的、惩罚性的、惩戒性的、附随的和/或间接损害或损失；和/或一方客户因任何前述损失、成本或损害提出的索赔。

“Contract” means either the contract agreement signed by both parties or the purchase order signed by Buyer and expressly accepted by Seller in writing, together with these Terms and Conditions, addendums to these Terms and Conditions and any other documents incorporated by reference, Seller's Proposal, and any agreed scope of work for the sale of Products, Parts, and/or Services, and/or licensing of software.

“本合同”指针对产品、零部件和/或服务的销售和/或软件的许可，双方签订的合同或买方签署的且经卖方书面明确接受的订单，以及本条款和条件、本条款和条件的附录、以引用方式纳入的任何其他文件、卖方投标文件和任何约定的工作范围。

“Contract Price” means the aggregate amount to be paid by Buyer to Seller for the purchase of Products, Parts, and/or Services, and/or licensing of software, including but not limited to any amounts to be paid by Buyer to Seller for the license of software, as stated in the Contract, and any agreed adjustments to the same.

“合同价款”指本合同中规定的，买方为购买产品、零部件和/或服务或/或软件许可向卖方支付的总金额，包括但不限于买方就软件许可需向卖方支付的任何金额，以及双方约定的对该金额的任何调整。

“Delivery” means when the Products/Parts have been delivered according to Article 2.1 of these Terms and Conditions or as provided in the Software Addendum. “Deliver” and “Delivered” shall be construed accordingly.

“交付”（为名词时）指产品/零部件已根据本条款和条件第 2.1 条或软件附录中的规定交付。“交付”（为动词或形容词时）应依此作相应解释。

“Derivative Works” means: (a) any work based upon one or more pre-existing works, including, but not limited to, a revision, enhancement, modification,

translation, abridgement, condensation, expansion, extension or any other form in which such pre-existing works may be published, recast, transformed, or adapted, and that if prepared without the authorization of the owner of the copyright to such pre-existing works, would constitute a copyright infringement, and/or (b) any compilation that incorporates such pre-existing works. For software, Documentation, and third-party software, Derivative Works also includes any and all corrections, bug fixes, and updates to the (i) software, (ii) Documentation, (iii) third-party software, and (iv) Derivative Works.

“**衍生作品**”指：(a) 任何基于一个或多个先前存在的作品而创作的作品，包括但不限于对先前存在的作品的修改、优化、修正、翻译、删减、压缩、扩展、延展或其他任何可能使得先前存在的作品被发布、改写、改变或改编的形式，且如果未经该先前存在作品的著作权所有人授权而创作出该作品，会构成著作权侵权，和/或(b)包含先前存在的作品的任何汇编。就软件、文档以及第三方软件而言，衍生作品还包括对(i)软件、(ii)文档、(iii)第三方软件和(iv)衍生作品这四类的任何及全部修正、补丁及更新。

“**Documentation**” means all product manuals, technical specifications, and user instructions regarding the capabilities, operation, installation, and use of the Products, Part, Services, software and/or third-party software, whether in printed, on-line, or electronic form (except training materials), as may be made available or updated by Seller from time to time.

“**文档**”是指由卖方不时提供或更新的与产品、零部件、服务、软件和/或第三方软件的性能、操作、安装和使用相关的所有产品手册、技术规格以及使用说明，不论是以印刷形式、在线形式还是电子形式存在（不包括培训材料）。

“**EU Model Clauses**” means the Standard Contractual Clauses (SCC) for data transfers from data controllers in the EU to data controllers established outside the EU or European Economic Area (EEA) (decisions 2001/497/EC, 2004/915/EC) and for data transfers from controllers in the EU to processors established outside the EU or EEA (decision 2010/87/EU) as published on the Europa website.

“**欧盟示范条款**”是指 Europa 网站上公布的有关从位于欧盟的数据控制者到设立于欧盟或欧洲经济区（EEA）以外的数据控制者的数据传输的标准合同条款（SCC）（第 2001/497/EC 号决定、第 2004/915/EC 号决定）以及从位于欧盟的控制者到设立于欧盟或欧洲经济区以外的处理者的数据传输的标准合同条款（SCC）（第 2010/87/EU 号决定）。

“**Group**” means with respect to either party, such party (either Buyer or Seller, as applicable), as well as its Affiliates, and in connection with the project to which the Products, Parts, and/or Services relate, its joint venture partners, joint interest owners, co-lessees, consortium members, and/or other partners, and, in respect of Buyer only, the Site owner, end user, and/or Site operator; and for all of the above, also its and their contractors and subcontractors of any tier in connection with said project, as well as the shareholders, officers, directors, employees, invitees, agents, and consultants of all of the foregoing. “Buyer Group” and “Seller Group” shall be construed accordingly. Seller Group does not include any member of Buyer Group; Buyer Group does not include any member of Seller Group.

“**集团**”，就任一方而言，指该方（视情况，买方或卖方）和其关联方，及与涉及产品、零部件和/或服务的项目相关的，其合营企业合作伙伴、利益共有人、共同承租人、联合体成员和/或其他合作伙伴，以及仅就买方而言，现场所有方、最终用户和/或现场运营方；就前述各方而言，还包括与该项目相关的其承包商和各级分包商，以及前述所有各方的股东、管理人员、董事、员工、受邀人、代理和顾问。“买方集团”和“卖方集团”应依此作相应解释。卖方集团不包括买方集团任何成员；买方集团不包括卖方集团任何成员。

“**Hazardous Materials**” means any chemical, substance, material, waste, or emission defined, classified, or regulated as hazardous or toxic, or as a pollutant, contaminant, or threat or potential threat to human health, safety, or the environment under Applicable Law, including but not limited to naturally occurring radioactive material, hydrocarbons, asbestos, lead, hydrogen sulphide, or polychlorinated hydrocarbons, including biphenyls and biphenols.

“**危险物质**”指适用法律下被定义、分类或规定为有毒或有害，污染物、致污物，或对人体健康、安全或环境构成威胁或潜在威胁的任何化学品、物质、材料、废弃物或排放物，包括但不限于天然放射性物质、烃类、石棉、铅、硫化氢或多氯烃（包括联苯和双酚）。

“**Indemnify**” means release, defend, indemnify, and hold harmless.

“**赔偿**”指免除责任、抗辩、赔偿和免受损害。

“**Parts**” means the spare or repaired parts required in relation to the Product, identified by Seller in the Contract.

“**零部件**”指卖方在本合同中确定的与产品有关的必要的备件或维修零件。

“**PRC**” means the People's Republic of China (for the purpose of these Terms and Conditions, excluding the Hong Kong Special Administrative Region, the Macau Special Administrative Region and Taiwan).

“**中国**”指中华人民共和国（为本条款和条件之目的，不包括香港特别行政区、澳门特别行政区和台湾）。

“**Products**” means all equipment, materials, supplies, software, third-party software, products, and other goods (excluding Parts) sold, leased, or licensed under the Contract, as applicable.

“**产品**”指本合同项下出售、出租或许可的所有（适用的）设备、材料、耗材、软件、第三方软件、产品和其他货物（不包括零部件）。

“**Proposal**” means Seller's formal written offer to provide Products, Parts, and/or Services, and any mutually agreed written amendments thereto.

“**投标文件**”指卖方提供产品、零部件和/或服务的正式书面要约，以及经双方书面同意的对该等要约的修改。

“**REGARDLESS OF CAUSE OR ACTION**” MEANS (TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW), REGARDLESS OF: CAUSE, FAULT, DEFAULT, NEGLIGENCE IN ANY FORM OR DEGREE, STRICT OR ABSOLUTE LIABILITY, BREACH OF DUTY (STATUTORY OR OTHERWISE) OF ANY PERSON, INCLUDING OF THE INDEMNIFIED PERSON, UNSEAWORTHINESS OF ANY VESSEL, AND/OR ANY DEFECT IN ANY PREMISES/VESSEL; FOR ALL OF THE ABOVE, WHETHER PRE-EXISTING OR NOT AND WHETHER THE DAMAGES, LIABILITIES, OR CLAIMS OF ANY KIND RESULT FROM CONTRACT, WARRANTY, INDEMNITY, TORT/EXTRA-CONTRACTUAL, OR STRICT LIABILITY, QUASI CONTRACT, LAW, OR OTHERWISE.

“**不论事由或行为**”指（在适用法律允许的最大范围内）不考虑：任何形式或程度的事由、过错、违约、过失，严格或绝对责任，任何人（包括被赔偿人）对（法定或其他）义务的违反，任何船舶不适航性，和/或任何场地/船舶的缺陷；就前述各项而言，不论是否事先存在，不论（任何类型的）损害、责任或索赔是否是因合同、保证、赔偿、侵权/合同外或严格责任、准合同、法律或其他原因而引起。

“**Seller**” means the named Baker Hughes Company entity signing the Contract and its successors and permitted assigns.

“**卖方**”指具体签订本合同的贝克休斯公司实体及其继受人和许可受让人。

“**Seller Taxes**” means all corporate income taxes imposed on Seller and any taxes imposed on Seller's employees in connection with the execution of the Contract or the performance of or payment for work hereunder by Applicable Law.

“**卖方税款**”指适用法律就与本合同的签署、履行本合同项下的工作或支付本合同项下工作报酬相关事宜而对卖方征收的全部企业所得税及对卖方员工征收的任何税。

“**Services**” means all the services, including, without limitation, technical assistance and guidance, training, repairs, hosted services, and remote diagnostics, to be provided by Seller under the Contract.

“**服务**”指本合同下卖方提供的全部服务，包括但不限于技术协助和指导、培训、修理、托管服务和远程诊断。

“**Site**” means the premises where Parts or Products are used or meant to be used and/or Services are performed or meant to be performed, not including any Seller Group's premises.

“**现场**”指使用或计划使用零部件或产品的场地，和/或履行或计划履行服务的场地，不包括任何卖方集团的场地

“**Software Addendum**” means the Software License and Security Addendum attached to these Terms and Conditions, which is incorporated herein by reference and made a part hereof.

“**软件附录**”指附属于本条款和条件的《软件许可和安全附录》，该附录已通过引用被纳入本条款和条件并构成本条款和条件的一部分。

2. DELIVERY, TRANSFER OF TITLE & RISK, STORAGE

2. 交付、所有权和风险转移、仓储

2.1. Unless otherwise provided in the Contract and in accordance with Incoterms 2020: (a) for all shipments where the Seller is arranging transportation (for all modes), Seller shall deliver the Products/Parts CPT - carriage paid to named place of destination (risk of loss transfers at location where goods are loaded on the first means of transport); (b) for shipments where Buyer is arranging transportation: (i) via ocean/sea from port of export; Seller shall deliver Products/Parts to Buyer FOB at specified port of export (Buyer's Service Provider / Freight Forwarder shall

provide the Seller a copy of the shipment Bill of Lading (“BOL”), and (ii) for all other, FCA Seller’s facility or named place (Buyer’s Service Provider/Freight Forwarder shall provide the Seller a copy of the shipment BOL). The “Delivery Date” for any item of the Products/Parts is defined as the date on which such item is Delivered in accordance with this Article 2.1 or, for software, in accordance with the Software Addendum. Partial Delivery and Delivery in advance of the Delivery schedule shall be permitted, unless the Contract states otherwise.

2.1. 除非本合同另作规定，依照《国际商会 2020 国际贸易术语解释通则》，(a)对于卖方安排运输（适用全部的运输方式）的所有货运，卖方应按 CPT（运费付至指定目的地）方式交付产品/零部件（货物灭失的风险自货物装载于第一种交通工具上之所在地点转移）；(b)对于买方安排运输的货运：(i) 对于从出口港口经大洋/海洋运输；卖方应以 FOB 指定的出口港方式向买方交付产品/零部件（买方的服务提供商/货运代理应向卖方提供货运提单（“BOL”）的副本并且(ii) 对于所有其他方式的货运，以 FCA 卖方设施或指定地点的方式将产品/零部件交付给买方（买方的服务提供商/货运代理应向卖方提供货运提单 BOL 的副本）。任何产品/零部件的“交付日期”指该产品/零部件按照本第 2.1 条规定而交付的日期，任何软件的“交付日期”指该软件按照软件附录规定而交付的日期。除非本合同另有规定，允许部分交付和于交付时间表前提交交付。

2.2. Subject to Article 2.3, title and risk of loss to Products and/or Parts shall pass upon Delivery as provided in Article 2.1, with the exception that title and risk of loss to: (a) Products and/or Parts shipped from the United States of America (“U.S.”) shall pass from Seller to Buyer immediately after each item departs from the U.S. territorial land, seas, and overlying airspace, which the parties acknowledge extend to twelve (12) nautical miles from the baseline of the country, determined in accordance with the 1982 United Nations Convention of the Law of the Sea; and (b) Products and/or Parts to be shipped to a Delivery destination directly from countries different from Seller’s country of formation (drop shipment), shall pass immediately after each item departs from the territorial land, seas, and overlying airspace of the sending country. For the avoidance of doubt, and notwithstanding anything to the contrary herein: (a) Seller or its relevant Group member shall retain title to any equipment leased to Buyer Group; and (b) Seller or its relevant Group member or third-party licensor shall retain title to any software, Documentation, and third-party software furnished by Seller Group to Buyer Group. No title to the software, Documentation, or third-party software, including any software embedded in or included with Products, is transferred to Buyer Group. Any software, Documentation, and third-party software provided under the Contract is licensed pursuant to the Software Addendum and is not sold.

2.2. 受限于第 2.3 条的规定，产品和/或零部件的所有权和灭失风险应在第 2.1 条规定的交付之时转移，但下列情况除外：(a) 从美利坚合众国（“美国”）运出的产品和/或零部件的所有权和灭失风险应在每件产品和/或零部件从美国陆陆、领海及领空（双方同意依据 1982 年《联合国海洋法公约》而将领海界定为从国家的基线延伸至十二（12）海里）离开后立即从卖方转移至买方；和 (b) 直接从卖方设立地国家以外的国家运输至交付目的地（厂商直接发运）的产品和/或零部件的所有权和灭失风险应在每件产品和/或零部件从发运国陆陆、领海和领空离开后立即转移。为免疑义，也不论本条款和条件中是否存在相反规定：(a) 卖方或其相关集团成员应保留对出租给买方集团的任何设备的所有权；及 (b) 卖方或其相关集团成员或第三方可方应保留对卖方集团向买方集团提供的任何软件、文档和第三方软件的所有权。软件、文档和第三方软件（包括任何嵌入产品或包含在产品内的软件）的所有权均不转移至买方集团。本合同项下提供的任何软件、文档和第三方软件均是根据软件附录被许可，而非出售。

2.3. If any of the Products and/or Parts cannot be shipped to Buyer in accordance with the agreed upon Delivery terms due to any cause not attributable to Seller Group, upon written notice to Buyer, Seller may store the Products and/or Parts or ship them to an outside storage facility, in which case: (i) any amounts otherwise payable to Seller upon Delivery or shipment shall become payable upon presentation of a certification specifying the cause and place of storage (any payment security shall allow payments upon presentation of notice to storage instead of transport documents); (ii) all and any expenses incurred by Seller Group, including for the preparation and placement into storage, transportation, insurance, handling, inspection, preservation, removal charges, interest, and any VAT or other taxes imposed directly or indirectly under Applicable Law shall be reimbursed or paid by Buyer immediately upon submission of Seller’s invoice(s); and (iii) when reasonably possible and upon payment of all amounts due hereunder, but no later than the lesser of (a) the statutory period provided to receive VAT or similar tax export or discharge exemption, or (b) sixty (60) days, Seller shall be entitled to resume Delivery of the Products and/or Parts to the agreed point of Delivery as provided in Article 2.1. Title and risk of loss to Products

and/or Parts shall pass as provided in Article 2.2. The terms of this Article 2.3 shall apply also in the event any Buyer equipment repaired at Seller Group’s facilities cannot be shipped due to any cause not attributable to Seller Group, or received by Buyer for any reason in accordance with the agreed upon terms, provided that, in the case of Buyer equipment to be repaired at Seller Group’s facilities, Buyer shall retain title to, and risk of loss for, any such equipment at all times.

2.3. 如果由于不可归因于卖方集团的任何原因导致任何产品和/或零部件不能按照约定交付条款运送至买方，则在书面通知买方后，卖方可以储存该产品和/或零部件或将其运至某一外部仓储设施，在此情况下：(i) 本应在交付或装运时到期应付给卖方的任何款项，应在出示注明了储存原因及地点的证明后立即到期应付（任何付款担保应允许见仓储通知（而非运输单据）支付）；(ii) 卖方集团产生的所有及任何费用，包括仓储准备和存放、运输、保险、装卸、检查、保存、搬移费用、利息以及根据适用法律直接或间接征收的任何增值税或任何其他税款，在卖方提交发票时应由买方立即偿还或支付；并且(iii) 在合理可能且本合同的全部应付款项均已支付的前提下，但不得迟于以下时间中较短者(a) 规定的获得增值税或类似税项之出口豁免或排放豁免的法定期限，或(b) 六十（60）天，卖方应有权重新将产品和/或零部件交付至第 2.1 条约定的交付地点。产品和/或零部件的所有权和灭失风险应根据第 2.2 条转移。就任何在卖方集团设施中进行修理的买方设备因不可归因于卖方集团的任何原因无法根据约定条款向买方发运，或因任何原因无法根据约定条款由买方收取的情况，第 2.3 条规定亦适用，前提是在卖方集团设施中修理的买方设备，买方应始终保留任何该等设备的所有权并始终承担该等设备的灭失风险。

3. EXCUSABLE DELAYS

3. 可免责的延迟

3.1. Neither party shall be liable to the other for nor considered in breach or default of its obligations under the Contract to the extent performance of such obligations is delayed or prevented, directly or indirectly, due to causes beyond the impacted party’s reasonable control, including but not limited to: (a) natural or man-made disasters, acts of God, acts or omissions of governmental authorities, fire, severe weather conditions, earthquake, strikes or other labor disturbances, flood, serious risk of kidnapping, war (declared or undeclared), armed conflict, acts or threats of terrorism, pandemics, epidemics, quarantines, regional, national or international calamities, civil unrest, riot, severe delay in transportation, severe car shortage, or inability to obtain necessary materials, components or services; (b) in the case of Seller, acts or omissions of Buyer Group, including failure to timely provide Seller Group with any access, information, tools, material, and approvals necessary to permit Seller Group to timely perform the required activities, and including, without limitation, unknown physical conditions at the Site of an unusual nature and differing materially from those ordinarily encountered and generally recognized as occurring in the work of the character provided for in the Contract. The impacted party shall promptly notify the other party in the event of a delay under this Article 3. The Delivery or performance dates shall be extended for a period equal to the time lost by reason of such delay, plus such additional time as may be reasonably necessary to overcome the effect of such delay. If Seller is delayed by acts or omissions of Buyer Group, or by the prerequisite work of Buyer’s other contractors, Seller shall also be entitled to an equitable price adjustment. Under no circumstances shall Buyer’s payment obligation be deemed excusable under this Article 3.

3.1. 就因超出任何受影响一方合理控制的原因直接或间接导致的对该方义务的延迟履行或无法履行，该方不应对他方承担责任或被视为违反或不履行本合同义务，该等原因包括但不限于：(a) 自然或人为的灾难、自然灾害、政府机构作为或不作为、火灾、恶劣天气条件、地震、罢工或其他劳工动乱、洪水、严重绑架风险、战争（无论是否宣战）、武装冲突、恐怖主义行动或威胁、大流行病、流行病、检疫隔离、区域性或国家性或国际性灾难、民众骚乱、暴乱、交通严重延误、车辆严重短缺或无法获得必要原材料、组件或服务；(b) 就卖方而言，买方集团的作为或不作为，包括未能及时向卖方集团提供卖方集团及时履行必要行为所需的任何权限、信息、工具、材料和批准，包括但不限于与本合同规定类型的工作中通常遇到和普遍认定会发生的条件存在重大差异的特殊性质的现场未知物理条件。如遇本第 3 条项下延迟，受影响一方应及时通知另一方。交付或履行日期应根据因该延迟损失的时间顺延，并加上克服该延迟影响合理所需的额外时间。如因买方集团作为或不作为，或买方其他承包商前期必要工作的原因导致卖方延迟，卖方还有权对价格进行合理调整。买方的支付义务在任何情况下均不得依据本第 3 条规定予以免除。

3.2. If a delay excused by this Article 3 extends for more than 90 days and the parties have not agreed upon a revised basis for resuming work, including an equitable price adjustment, then either party (except where such delay is caused by Buyer Group, in which event only Seller), upon 30 days’ written notice may

terminate the Contract with respect to the unexecuted portion of the work. In the event of a delay under Article 3.1(b), the terms of Article 10.2 shall apply in full. In the event of a delay under Article 3.1(a), Buyer shall pay Seller the pro-rated Contract Price for all work performed before the effective date of termination.

3.2. 若本第 3 条规定的可免责延迟持续超过 90 日，且双方未就重新开展工作达成一致调整意见，包括合理价格调整，则任何一方（延迟因买方集团导致时，仅卖方）可以提前 30 日发送书面通知，终止本合同未履行部分。如为第 3.1(b) 条规定的延迟情形，第 10.2 条规定应完整适用。如为第 3.1(a) 条规定的延迟情形，买方应就终止生效日期前已完成的所有工作向卖方按比例支付合同价款。

4. LIMITED WARRANTY

4.有限质保

4.1. Subject to the limitations set forth in the Contract and in this Article 4, and except with regard warranties set forth in the relevant Addendum, Seller warrants to Buyer that: (i) the Products and/or Parts shall be Delivered free from defects in material, workmanship and title; and (ii) the Services shall be performed in a competent and diligent manner in accordance with any mutually agreed specifications. Unless Seller expressly agrees otherwise in writing and except for Products/Parts provided by Seller's Affiliates, any Parts not manufactured by Seller (including incidental materials and consumables used in the Services) shall carry only the warranty provided by the original manufacturers, and Seller gives no warranty for such Parts.

4.1. 受本合同规定的限制以及本第 4 条的约束，且除载于相关附录的保证之外，卖方向买方保证：(i) 交付的产品和/或零部件在材料、工艺和所有权方面无瑕疵；且 (ii) 将按照双方同意的规格，以称职和勤勉的方式提供服务。除非卖方另行以书面方式明确同意，且除卖方关联方提供的产品/零部件外，任何非由卖方制造的零部件（包括服务中使用的附带性材料和消耗品）只适用该零部件原制造商提供的质保，卖方不为该等零部件提供任何质保。

4.2. Unless otherwise stated in the Contract, the warranty period ("Warranty Period") shall be as follows:

4.2. 除非本合同另作规定，质保期（“质保期”）规定如下：

(i) for Products and Parts (except software): (a) as set forth in the table below, or (b) if not in the table, the Warranty Period ends the earlier of one (1) year from first use or eighteen (18) months from shipment:

(i) 产品和零部件（软件除外）：(a) 按照下表所规定；或 (b) 如不属于下表规定的，质保期以后述二者中较早结束的为准：初次使用后一（1）年或装运后十八（18）个月；

Products & Parts Warranty Period Table (excluding software) 产品和零部件质保期列表（软件除外）	
Product Line 产品线	Warranty Period Ends 质保期结束时间
Bently Nevada	36 months from shipment 装运后 36 个月
Druck	12 months from shipment 装运后 12 个月
Nexus Controls	Per Article 4.2(i)(b) 按照第 4.2(i)(b) 条
Panametrics	Per Article 4.2(i)(b) 按照第 4.2(i)(b) 条
Reuter-Stokes	Per Article 4.2(i)(b) 按照第 4.2(i)(b) 条
Waygate Technologies	12 months from shipment 装运后 12 个月

(ii) for all Services, including without limitation Software Services and Repair Services: Warranty Period ends ninety (90) days from performance or completion of Services, with the following exceptions:

(ii) 对于所有服务，包括但不限于软件服务和维修服务：质保期于服务履行或完成后九十（90）日结束，下述情况除外：

- (a) Training Services (all Product Lines): Warranty Period ends on the date of training completion;
培训服务（所有产品线）：质保期于培训完成日结束；
- (b) Nexus Controls Parts Repair Services: Warranty Period ends twenty-four (24) months from completion of repair;

Nexus Controls 零部件维修服务：质保期于维修完成后二十四（24）个月结束；

- (c) Panametrics Moisture Probe Calibrations: Warranty Period ends six (6) months from calibration date;
Panametrics 微量水探头标定：质保期于标定日后六（6）个月结束；
- (d) Bently Nevada and Nexus Controls Services (but excluding Training, Repair, and Software Services): Warranty Period ends twelve (12) months from date of performance of Services.

Bently Nevada 和 Nexus Controls 服务（培训、维修和软件服务除外）：质保期于服务履行日后的十二（12）个月结束。

4.3. If Products, Parts, or Services do not meet the above warranties during the applicable Warranty Period, Seller's sole and exclusive liability shall be to either re-perform the defective Services, or repair or replace the defective component of the Products/Parts, as applicable, at Seller's option, provided that Seller shall not be obligated to re-perform the defective Services, or repair or replace the defective component of the Products or Parts, as applicable, unless Buyer informs Seller in writing within fifteen (15) days of discovery of such defects. Warranty repair, replacement, or re-performance by Seller shall not extend or renew the applicable Warranty Period. If despite Seller's reasonable efforts, a non-conforming Product or Part cannot be repaired or replaced, or non-conforming Services cannot be re-performed, Seller shall refund or credit monies paid by Buyer for such non-conforming Products, Parts, and/or Services. Seller Group shall under no circumstances be liable for defects that arise or are discovered after expiration of the Warranty Period.

4.3. 如产品、零部件或服务在适用的质保期内未满足前述质保要求，卖方承担的唯一且排他的责任应为重新履行有缺陷的服务，或根据卖方的选择修理或更换产品/零部件之有缺陷的组件（按适用情形），但除非买方在发现该等缺陷后的十五（15）日内书面通知卖方，卖方无义务重新履行有缺陷的服务，也无义务修理或更换产品或零部件之有缺陷的组件（按适用情形）。卖方质保范围内的修理、更换或重新履行不使适用的质保期延长或重新计算。若卖方尽合理努力后，仍无法修理或更换不合格产品或零部件，或无法重新履行不合格服务，卖方应退还或贷记买方就该不合格产品、零部件和/或服务支付的款项。对质保期期满后出现或被发现的缺陷，任何情况下卖方集团均不承担责任。

4.4. Seller shall not be liable for accessing, retrieving, removing, or decontaminating defective Products or Parts, or for reinstalling repaired or replacement Products or Parts, or for any costs, damages, or losses incurred in connection with any of the above operations. If repair Services are to be performed on Buyer's equipment at a Seller Group's facility, Buyer shall be responsible for transporting the equipment to and from Seller Group's facility and Buyer shall retain title and risk of loss at all times. Buyer shall be responsible for all customs formalities, costs, duties and taxes connected with any export to Seller and import of goods sent back to Buyer. Failure to meet any such conditions renders the warranty null and void.

4.4. 卖方不负责接近、收回、移除有缺陷产品或零部件或为其消除污染，不负责重新安装修理或更换后的产品或零部件，亦不承担与任何前述操作相关所产生的费用、损害或损失。若对买方的设备的修理服务须在卖方集团设施中进行，买方应负责设备往返卖方集团设施的运输，且买方始终保留设备所有权并承担灭失风险。买方应负责货物向卖方出口和运回买方时进口所相关的所有海关手续、费用、关税和税款。如未满足任何该等条件，质保将无效。

4.5. Seller does not warrant the Products, Parts, or any repaired or replacement item against normal wear and tear. The warranties and remedies set forth herein are conditioned upon: (i) proper storage, installation, use, operation, maintenance of the Products/Parts, and conformance with the operation instruction and installation manuals (including revisions thereto) provided by Seller Group; (ii) Buyer keeping accurate and complete records of operation and maintenance during the Warranty Period and providing Seller access to those records; and (iii) repair or modification only as performed by Seller or when authorized by Seller in writing. FAILURE TO MEET ANY CONDITIONS IN THIS ARTICLE 4.5 RENDERS THE WARRANTY PROVIDED BY SELLER NULL AND VOID.

4.5 卖方不对产品、零部件或任何修理或更换后的产品或零部件的正常磨损提供质保。本条规定的质保和救济以下列条件为前提：(i) 买方应对产品/零部件进行适当仓储、安装、使用、操作和维护，并遵守卖方集团提供的操作指南和安装手册（包括其修订）；(ii) 买方在质保期内对操作和维护进行准确和完整的记录，并向卖方提供该记录；且 (iii) 任何修理或改装仅可由卖

方实施或经卖方书面授权时方可进行。如未满足本第 4.5 条规定的任何条件, 质保将无效。

4.6. THE REMEDIES SET FORTH IN THIS ARTICLE 4 (EXCEPT WITH REGARD TO SOFTWARE, FOR WHICH REMEDIES ARE SET FORTH IN The Software Addendum) CONSTITUTE THE SOLE AND EXCLUSIVE REMEDIES FOR ALL CLAIMS ARISING OUT OF OR RELATING TO ANY FAILURE OF, OR ANY DEFECT, OR NON CONFORMITY IN, THE PRODUCTS, PARTS, OR SERVICES, REGARDLESS OF WHEN THE FAILURE, DEFECT, OR NON CONFORMITY ARISES AND REGARDLESS OF CAUSE OR ACTION. TO THE FULL EXTENT PERMITTED BY APPLICABLE LAW, THE WARRANTIES SET FORTH IN THIS ARTICLE 4 AND The Software Addendum ARE EXCLUSIVE AND IN LIEU OF ALL OTHER WARRANTIES, CONDITIONS, AND GUARANTEES, WHETHER WRITTEN, ORAL, IMPLIED, OR STATUTORY. NO IMPLIED OR STATUTORY WARRANTY OR CONDITION OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE SHALL APPLY.

4.6. 本第 4 条规定的救济措施(软件除外, 与软件相关的救济措施规定于软件附录)构成针对产品、零部件或服务故障或任何缺陷或不合格所引起或与之相关的一切主张的唯一和排他救济, 不论故障、缺陷或不合格发生的时间, 也不论事由或行为。在适用法律允许的最大范围内, 本第 4 条以及软件附录规定的质保具有排他性, 替代其他所有书面、口头、默示或法定的保证、条件和担保。任何关于适销性或适用于特殊用途的默示或法定保证或条件均不适用。

5. INSPECTION AND FACTORY TESTS – The quality control exercised by Seller in its manufacture of Products and Parts shall be in accordance with Seller's normal quality control policies, procedures, and practices. Unless otherwise expressly agreed in the Contract, Seller shall attempt to accommodate Buyer's requests to witness Seller's factory tests of Products and/or Parts, as applicable, but only if such witnessing can be arranged without delaying the work. Access to Seller Group's premises shall be limited to areas directly concerned with the Products and/or Parts, as applicable, excluding in all cases areas where work of a proprietary or confidential nature is conducted.

5. 检验和工厂测试 – 卖方对其制造的产品及零部件的质量控制应当符合卖方的标准质量控制制度、程序和惯例。除本合同另有明确约定外, 卖方应尝试满足买方观看卖方对产品 and/或零部件进行工厂测试的要求(按适用情形), 但仅限于该等观看不会导致延迟完工的情况下。买方进入卖方集团场所的范围应仅限于与产品和/或零部件直接相关的区域(按适用情形), 且在任何情况下买方均不得进入专有的或保密性工作进行的工作场所。

6. CHANGES – Each party may at any time propose changes in the schedule or scope of Parts, Products, or Services in the form of a draft change order. Neither party is obligated to proceed with the changed schedule or scope until both parties agree to such change in writing. Unless otherwise agreed by the parties, pricing for additional work arising from such changes shall be at Seller's then-current time and material rates.

6. 变更 – 任何一方均可随时以变更订单的形式提议就零部件、产品或服务的时间表或范围进行变更。未经双方书面同意, 任何一方均无义务执行提议变更后的时间表或范围。除非双方另有约定, 因该等变更产生的额外工作的价格, 应根据卖方届时的工作费率及材料费率计价。

7. PAYMENT

7. 支付

7.1. Buyer shall pay Seller all invoiced amounts against one or more irrevocable, unconditional, letters of credit payable at sight ("Payment Security"), without any set-off, and in the currency agreed in the Contract. If not agreed in the Contract, payment shall be made in the currency set forth in the Proposal on 30-day terms from the date of the relevant invoice. Payment milestones, if any, shall be as agreed in the Contract.

7.1. 买方应不做任何抵销地以本合同约定的币种, 以一份或多份不可撤销、无条件的见票即付信用证("付款担保")向卖方支付全部发票金额。如果本合同没有约定, 买方应当在相关发票的发票日期之日起 30 日内, 按照投标文件中列明的币种完成付款。支付节点(如有), 应以本合同约定为准。

7.2. In addition to other Contract remedies, Buyer shall pay interest to Seller at the rate of 1.5% per month (or fraction thereof), not to exceed the lesser of 18% per annum or the maximum amount permitted by Applicable Law, on all amounts not timely paid in accordance with the Contract.

7.2. 除本合同规定的其他救济方法外, 对于未能根据本合同按时支付的款项, 买方应按 1.5% 的月利率(不足一个月时, 按比例确定利率)向卖方支付利息, 但年利率不超过 18% 或适用法律允许的最高数额(以二者中较低者为准)。

7.3. Each Payment Security shall be irrevocable and unconditional, and allow for pro-rata payments for partial Deliveries, other charges (e.g., storage, export shipments, cancellations, and adjustments), and all other payments due to Seller under the Contract. Each Payment Security shall be: (i) issued or confirmed by a primary international bank that is reasonably acceptable to Seller; (ii) payable at the counters of such bank; (iii) opened thirty (30) days from the Contract effective date; and (iv) remain in effect until the latest of ninety (90) days after the latest scheduled Products and/or Parts shipment, or completion of Services, or receipt by Seller of final payment. Buyer shall make relevant adjustments in the Payment Security (including increasing amounts or validity period and including in accordance with the changes agreed in the Contract) as required to fulfill its payment obligations under the Contract, within fifteen (15) business days of Seller's notification that such adjustment is necessary. Seller will not have an obligation to begin performance until the Payment Security, or the required adjustment thereof, has become operative.

7.3. 每个付款担保均应当是不可撤销且无条件的, 且允许就部分交付、其他费用(如存储、出口运输、取消及调整费用)以及本合同下应向卖方支付的所有其他款项按比例支付。每个付款担保应当: (i) 由一个被卖方合理接受的大型国际银行开具或确认; (ii) 可以在该银行的柜台承兑; (iii) 在本合同生效日起三十(30)日内开具; (iv) 在最终批次的产品和/或零部件发运日、服务完成日或卖方收到最终付款日中最晚一个日期起计算的九十(90)日内保持有效。买方应当对付款担保进行相应调整(包括增加金额、延长有效期以及根据本合同约定的变更进行的调整), 以满足其在本合同项下的付款义务, 上述调整应当在买方接到卖方确认该等调整必要的通知后的十五(15)个工作日内作出。在付款担保或其必要的调整生效之前, 卖方没有责任开始履行其义务。

8. TAXES AND DUTIES

8. 税收和关税

8.1. Seller shall be responsible for and shall pay when due and payable all Seller Taxes, and Buyer shall be responsible for and shall pay all Buyer Taxes. The Contract Price does not include any Buyer Taxes. Therefore, if any such taxes are applicable, they will be added to the Contract Price. For U.S. sales and use tax, and in other jurisdictions where applicable, Buyer may report/remit sales or similar taxes directly if Buyer timely provides a direct pay or exemption certificate to Seller.

8.1. 卖方应负责并在到期应付时支付所有的卖方税款, 买方应负责并支付所有的买方税款。合同价款不包括任何买方税款。因此, 如任何该等税款适用, 则该等税款金额将另行添加到合同价款。对于美国销售和使用税以及在其他适用的地域, 如果买方及时向卖方提供直接支付或豁免证明, 买方可直接申报/免除销售税或类似税款。

8.2. If Applicable Laws, other than for Seller's country of incorporation, require the Contract to be subject to stamp duty, fee, or registration, Buyer shall be responsible for the required formalities and bear the related costs. Buyer shall furnish to Seller a copy of the registration certificate or a registered copy of the Contract within ten (10) days from the due date required by said Applicable Laws to register or pay for such stamp duty, fee, or registration. According to the Applicable Laws of the country in which Buyer has requested Seller to provide Services, Seller may be required to be registered locally, in which case Seller shall perform the Services and invoice for them with the intervention of its relevant branch and/or permanent establishment.

8.2. 如果卖方设立地所在国家之外的国家的适用法律要求就本合同征收印花税、费用或要求对本合同进行登记, 买方应当负责完成所有要求的手续并承担相应费用。买方应在该等适用法律要求的登记到期日或支付印花税、费用或登记费到期日后十(10)日内, 向卖方提供登记证书的复印件或是经登记的本合同的复印件。根据买方要求卖方提供服务所在地国家的适用法律, 卖方需要在当地登记的, 卖方应当在其相关分支机构和/或常设机构的介入下提供服务并开具发票。

8.3. If Buyer is required to deduct or withhold any Seller Taxes from the Contract Price, Buyer shall: (a) give at least thirty (30) days prior written notice to Seller that Buyer intends to withhold; (b) make all reasonable efforts to minimize any withholding tax from payments to Seller, in accordance with Applicable Laws, and any applicable tax convention; and (c) provide Seller, within thirty (30) days from payment, the official receipt issued by the competent government authority to which the Seller Taxes have been paid, or a document acceptable to the relevant tax authorities. If Buyer requires tax residence certificates from Seller to apply for any exempted or reduced tax regime, Seller shall submit the appropriate certificates upon Buyer's written request. If Buyer, under the Applicable Laws of any country other than Seller's country of incorporation or in which Seller has a

branch, deducts or withholds Seller Taxes or fails to comply with the requirements of this Article 8.3, Buyer shall pay additional amounts to Seller so Seller receives the full amount of the Contract Price, as if no such Seller Taxes were deducted or withheld.

8.3. 如果买方被要求从合同价款中扣减或代扣任何卖方税款，买方应当：(a) 至少提前三十（30）日书面通知卖方买方打算进行税款代扣；(b) 根据适用法律以及任何适用的税收协定，尽一切合理努力使买方从应付卖方的款项中代扣的税款降至最少；及(c) 在缴付税款后的三十（30）日内，买方应当向卖方提供主管政府机关出具的卖方税款已被缴纳的正式收据，或是相关税务机关接受的文件。如果买方向卖方索要税务居民证明以申请任何税收豁免或减免，卖方应当经买方书面请求提供适当证明。如果买方根据除卖方设立地国家或卖方分支机构所在地国家以外国家的适用法律扣减或代扣卖方税款，或者买方未能遵守本第 8.3 条的要求，则买方应当向卖方支付额外的金额，以使卖方获得如同该等卖方税款未被扣减或代扣时应获得的足额合同价款。

8.4. If Buyer benefits from any tax, fee, or duty exemption which is applicable to Seller or Seller Group, Buyer agrees to provide Seller (without charge and before the following as applicable: (a) entering into the Contract, (b) invoicing, or (c) any other relevant event) documentation acceptable to the competent tax or customs authorities supporting the exemption, together with instructions on the exemption procedure. Buyer shall promptly inform Seller in writing about the revocation, expiration, or other change of the exemption. If Seller is denied the exemption due to a failure of the Buyer, Seller shall be entitled to invoice and Buyer shall pay promptly the applicable taxes, fees, duties, fines, penalties, interest, and court costs.

8.4. 如果买方因适用于卖方或卖方集团的任何税收、费用或关税豁免获益，买方同意（在以下适用事项发生时：(a) 签订本合同，(b) 开具发票，或(c)任何其他相关事项），无偿向卖方提供可以为税务机关或海关接受的支持该等豁免的文件，以及豁免程序的相关说明。买方应当及时书面告知卖方豁免的撤销、到期或其他变化。如果卖方因买方未履行相关义务而未能获得豁免，则卖方有权向买方开具发票，且买方应及时向卖方支付相应税款、费用、关税、罚金、罚款、利息和法庭费用。

8.5. When Buyer arranges the export or intra-European Union ("EU") community shipment, Buyer will provide to Seller, free of charge, evidence that such exportation or intra EU community shipment was made within the statutory deadlines of the country of exportation or dispatch as required to qualify for a VAT, sales tax, or similar tax export exemption. Such evidence must be in a form that is acceptable to the competent tax and customs authorities. Failing the above, Seller shall be entitled to invoice Buyer the applicable VAT, U.S. sales and use tax, or similar taxes. When Buyer arranges the transport and importation of Products and/or Parts, Buyer will provide, within thirty (30) days of Seller's request, documentation for such Buyer's transport and import and similar documents as required by the relevant tax authorities.

8.5. 当买方安排出口或在欧洲联盟（“欧盟”）共同体内进行的货运时，买方将向卖方免费提供证明，证明该等出口或向欧盟内共同体的货运在出口国或发送国要求的获得增值税、销售税或类似税之出口豁免资格的法定期限内。该等证明应当符合主管税务机关和海关接受的形式。若未按上述要求进行，卖方有权就适用的增值税、美国销售和使用税或类似税款向买方开具发票。如果买方安排产品和/或零部件的运输和进口，买方应在卖方提出要求后三十（30）天内提供该等买方的运输和进口文件以及相关税务机关要求的类似文件。

8.6. If either party does not comply with the tax legislation of the country where Products and/or Parts are manufactured or Delivered, or Services are rendered, such party ("Faulty Party") hereby agrees to Indemnify the other party ("Affected Party") for any Claims, cost, risk and responsibility including, but not limited to, fees, taxes, duties, charges, penalties, legal expenses, and interest which the Affected Party suffers as a result of Faulty Party's noncompliance. Buyer and Seller shall make commercially reasonable efforts to cooperate with each other to minimize the tax liability of any of the parties, to the extent legally permissible (but with no obligation to increase such party's tax liability), including separately stating taxable charges on Seller's invoices and supplying resale and exemption certificates, if applicable, and any other non-confidential information as reasonably requested.

8.6. 如果任何一方不遵守产品和/或零部件的制造地或交付地国家或服务提供地国家的税收法规，则该方（“过错方”）特此同意赔偿另一方（“受影响方”）任何由于过错方的不遵守行为而导致受影响方遭受的任何索赔、成本、风险和费用，包括但不限于费用、税款、关税、收费、罚款，法律费用以及利息。买方和卖方应在商业上做出合理的努力，在法律允许的范围内相

互合作，以尽量减少任何一方的应纳税额（但无义务增加己方的应纳税额），包括在卖方的发票上单独说明应纳税费用以及提供转售和豁免证书（如果适用），以及提供合理要求的其他任何非保密信息。

8.7. Buyer warrants, represents and undertakes for itself and on behalf of Buyer Group, that (i) neither Buyer nor any member of Buyer Group shall: engage in any activity, practice or conduct which would constitute either a UK or elsewhere tax evasion facilitation offence under Part 3 of the Criminal Finances Act 2017 (the "Act") and any associated guidance notes issued or similar legislation introduced elsewhere; (ii) Buyer and any member of Buyer Group have and shall maintain in place throughout the term of the Contract, such policies and procedures that are both reasonable to prevent the facilitation of tax evasion by any associated person as defined in the Act, and to require compliance with this Article 8.7; and (iii) Buyer and any member of Buyer Group shall promptly report to Seller any request or demand from a third party to facilitate evasion of tax within the meaning of Part 3 of the Act, in connection with the performance of the Contract. Where reasonable evidence is obtained that there has been a breach of this Article 8.7, Seller shall have the right, with no less than thirty (30) days prior written notice, to request the relevant records of the Buyer which relate directly to the Contract to enable the Seller to confirm whether a breach has occurred. If a breach of this Article 8.7 is subsequently confirmed, this shall be considered a material breach and Seller shall have the right to terminate the Contract.

8.7. 买方，为其自身并代表买方集团，保证、陈述并承诺：买方和买方集团任何成员：(i) 均不得从事任何根据《2017 年金融刑事法案》（“法案”）第 3 部分以及其他任何已发布的相关指导说明或在其他地方引入的类似立法而构成英国或其他地方逃税便利化罪行的活动、做法或行为；(ii) 在整个合同期限内应确立并维持适当的政策和程序，既可以防止该法案所定义的任何相关人员便利逃税，又可以要求其遵守本第 8.7 条；且(iii) 及时向卖方报告与本合同履行有关的第三方的任何请求或要求，如果该请求或要求根据该法案第 3 部分所指会便利逃税行为。如果已经获得合理证据证明存在对第 8.7 条的违反，则卖方有权在提前至少三十（30）天书面通知下，要求买方提供直接与本合同有关的相关记录，以使卖方能够确认是否发生违反。如果随后确认存在对第 8.7 条的违反，则应视为重大违约，卖方应有权解除本合同。

9. ASSIGNMENT, NOVATION & SUBCONTRACTING – Buyer may assign or novate the Contract, in full or in part, including through change of ownership, only with the prior written consent of Seller, which consent shall not be unreasonably delayed or withheld, provided that Seller shall be entitled to withhold such consent for demonstrable reasons if the assignee/novatee lacks adequate financial capability, is a competitor or potential competitor of Seller or its Affiliates, causes Seller Group to be in breach of Applicable Law, and/or does not meet Seller's code of ethics. Seller may assign or novate the Contract, in full or in part, only with prior written consent of Buyer, which consent shall not be unreasonably delayed or withheld, provided that Seller may, without Buyer's consent assign or novate the Contract, in full or in part, to one or more Affiliates of Seller. The parties agree to execute such documents as may be necessary to effect the permitted assignments or novations. In the event of a novation or assignment by Buyer, Buyer shall cause the novatee/assignee to provide additional payment security at Seller's reasonable request. Any assignment or novation in violation of the above shall be void and without effect for the other party. Nothing herein shall restrict Seller from subcontracting portions of its work, provided that Seller remains responsible to Buyer for performance of such work.

9. 转让、转移和分包 – 只有经卖方事先书面同意（该等同意不应被不合理地延迟或拒绝），买方可以通过包括所有权变更的方式就本合同全部或部分进行转让或转移，但是如果受让人/受让方缺乏足够的财务能力、或是卖方或其关联方的竞争者或潜在竞争者、或导致卖方集团违反适用法律和/或不符合卖方的行为准则，卖方有权以该等可证明的理由拒绝作出同意。只有经买方事先书面同意（该同意不应被不合理地延迟或拒绝），卖方才可以就合同全部或部分进行转让或转移，但卖方可在未得到买方同意的情况下，将本合同全部或部分转让或转移给其一个或多个关联方。双方同意签署使被允许的转让或转移生效所需要的文件。买方进行上述转让或移交时，应卖方的合理请求，买方应当促成该受让人/受让人向卖方提供额外的付款担保。任何违反上述约定的转让或转移应被视作无效且对另一方不产生影响。本合同中任何内容均不应限制卖方分包其部分工作，但卖方应就分包部分的合同履行情况向买方负责。

10. TERMINATION AND SUSPENSION

10. 终止和中止

10.1. Either party may terminate the Contract for default if: (a) any proceeding is brought against the other party, voluntarily or involuntarily, under applicable bankruptcy or insolvency laws, or if the other party is unable to pay its debts when due, to the extent permitted by Applicable Law; or (b) the other party commits a material breach of the Contract, which does not otherwise have a specified contractual remedy, and fails to cure the breach within thirty (30) days of notice from the non-breaching party, or if it is not possible to cure such breach within thirty (30) days, fails to commence to cure the breach within thirty (30) days of such notice or fails to thereafter continue diligent efforts to complete the cure as soon as reasonably possible. In the event of a termination by Buyer under this Article 10.1, Seller shall reimburse Buyer the difference between that portion of the Contract Price allocable to the terminated scope and the actual amounts reasonably incurred by Buyer to complete such terminated scope; and Buyer shall pay to Seller the portion of the Contract Price allocable to Products/Parts purchased and/or completed, and amounts for Services performed, before the effective date of termination. Said amounts shall be calculated using the applicable Contract rates, or in the absence of such rates, at Seller's then-current standard time and material rates. In the event there are agreed-upon Contract milestones, said amounts shall be calculated according to the milestone schedule for completed milestones, and the Contract rates for work toward milestones not yet achieved.

10.1. 在下列情况下，任何一方可以违约为由终止本合同：(a) 在适用法律允许的范围内，另一方根据适用的破产法自愿或非自愿地进入任何程序，或另一方无法偿还到期债务；或(b) 另一方对本合同重大违约，且针对该等违约行为没有明确的合同救济措施，并且未能在守约方发出通知后三十（30）日内纠正其违约行为，或者该等违约行为不可能在三十（30）日内得到纠正，违约方未能在守约方发出通知后三十（30）日内开始对该违约行为采取纠正措施，或未能在其后继续作出勤勉努力并在合理可能范围内尽快地完成纠正措施。在买方根据本第 10.1 条终止合同的情况下，卖方应就被终止的部分对应的合同价款和买方为完成被终止的合同部分而实际产生的合理费用之间的差额补偿买方；且买方应当向卖方支付在终止生效日前已购买和/或已完成的产品/零部件所对应的合同价款，以及已履行服务的金额。该等金额应当根据可适用的合同费率进行计算，或是在没有该等费率的情况下，根据卖方届时的时间和材料之标准费率来计算。如双方约定了合同节点，就已完成的节点应当根据节点时间表来计算该等金额，就未完成的节点其工作应当按照合同费率来计算该等金额。

10.2. The terms set forth in this Article 10.2 shall not apply if the Contract is for provision of software or third-party software. Buyer may terminate the Contract (even in part) upon twenty (20) days prior written notice for reasons other than those set forth in Article 10.1. If the Contract (or any portion thereof) is terminated for any reason other than Seller's default under Article 10.1, Buyer shall pay Seller in accordance with the cancellation/termination schedule set forth in the Contract. Where no cancellation/termination schedule exists, Buyer shall pay Seller: (a) for Contracts based on milestone billing, the amount due in accordance with the milestone schedule (for completed milestones) and 15% of the Contract Price applicable to all other uncompleted milestones; or (b) for Contracts not based on milestone billing, the pro-rated Contract Price for all work performed before the effective date of termination, plus 15% of the Contract Price applicable to all other work that has not been performed; the amount due for Service work shall be in accordance with Seller's then-current standard time and material rates. In addition to both (a) and (b), Buyer shall also pay Seller all costs and expenses incurred by Seller as a direct result of the termination, including the costs associated with vendor disputes or Claims. The parties acknowledge and agree that the liquidated damages set forth in this Article 10.2 are a reasonable estimate of the damages that would result from any such early termination, that actual damages would be difficult to ascertain, and that the liquidated damages are an alternative to performance and not a penalty.

10.2. 如果本合同为提供软件或第三方软件而签署，则本第 10.2 条规定的条款不适用。买方可通过提前 20 日的书面通知，以第 10.1 条所列之外的原因解除（甚至部分解除）本合同。如果本合同（或本合同的任何部分）因第 10.1 条项下卖方违约以外的原因被解除，买方应根据本合同规定的解除/终止时间表向卖方支付费用。若该等时间表不存在，则买方应当向卖方支付：(a) 就基于时间节点收费的合同，根据时间节点表到期应付的款项（对已完成的时间节点而言），以及对所有其他未完成的时间节点而言对应合同价款的 15%；或(b) 就非基于时间节点收费的合同，与终止生效日之前履行的全部工作相应比例的合同价款，加上所有其他未履行工作对应合同价款的 15%；服务工作到期应付的款项应根据卖方适用的标准时间费率和材料费率予以支付。除前述的(a)项和(b)项外，买方亦应当向卖方支付卖方因终止直接产生的成本及费用，包括与供货方提起的纠纷或索赔相关的费用。双方确认并同意，本第 10.2 条规定的违约金为上述提前终止可能造成的损害赔偿

的合理预估，上述情况下的实际损害赔偿很难确定，且该等违约金为履行义务的替代，并非罚款。

10.3. If Buyer fails to pay any outstanding undisputed invoice as set forth in the Contract or fails to issue the Payment Security within the time agreed, Seller may provide notice to Buyer of its intent to suspend performance and Delivery and/or terminate the Contract. If Buyer fails to make payment or issue Payment Security within thirty (30) days of such notice, Seller may suspend performance and Delivery and/or terminate the Contract. Any cost incurred by Seller as a result of such suspension or termination (including storage, stand-by costs, demobilization, and re-mobilization costs) shall be payable by Buyer upon submission of Seller's invoices. Performance of Seller's obligations shall be extended for a period equaling the period of Buyer's failure to meet its payment obligations, plus such additional time as may be reasonably necessary to overcome the effect of such payment delay.

10.3. 如果买方未就本合同下任何未偿付且无争议的发票进行支付，或是未能在约定的时间内出具付款担保，卖方可通知买方其中止履行本合同义务和交付和/或终止本合同的意图。如果买方在前述通知之后三十（30）日内未进行付款或未出具付款担保，则卖方可中止履行本合同义务和交付和/或终止本合同。因该等中止或终止而导致卖方产生的任何成本（包括仓储、等待成本、遣散人员和重新召集人员的成本）应由买方承担并在卖方向其提交发票后即付。卖方义务的履行期间，应按买方未能履行其付款义务的期间再加上卖方为克服该等延迟付款影响所合理必要的额外时间来进行相应延长。

10.4. With a twenty (20) day written prior notice, Buyer may elect to suspend performance of the Contract for a maximum cumulative period of ninety (90) days, after which Seller may terminate the Contract and Article 10.2 shall apply. In the event of suspension under this Article 10.4, Buyer shall also pay all reasonable expenses incurred by Seller in connection with the suspension, including without limitation, expenses for repossession, fee collection, stand-by costs, demobilization /remobilization, and costs of storage. The schedule for Seller's obligations shall be extended for a period of time reasonably necessary to overcome the effects of such suspension.

10.4. 在提前二十（20）日书面通知对方后，买方可选择中止履行本合同，累计的中止履行时间最长为九十（90）日。中止达九十（90）日之后，卖方有权解除本合同且第 10.2 条仍应适用。根据第 10.4 条中止履行的，买方应当同时向卖方支付因中止履行而产生的所有合理费用，包括但不限于重新取得的花费、收取费用的花费、等待成本、遣散人员/重新召集人员的成本以及仓储成本。卖方的义务履行时间表应当进行合理且必要的延长，以克服该中止履行产生的影响。

11. COMPLIANCE WITH LAWS, CODES, AND STANDARDS

11. 遵守法律、准则及标准

11.1. The Contract Price is based on Seller Group's design, manufacture, testing, and Delivery of the Products, Parts, and Services pursuant to: (i) its design criteria, manufacturing processes, and procedures and quality assurance program; (ii) those portions of industry specifications, codes, and standards in effect as of the date of entering into the Contract as are specified in the Contract; (iii) Applicable Law; and (iv) any mutually agreed upon written terms and specifications set forth in the Contract.

11.1. 合同价款是以卖方集团根据下列规则对产品、零部件和服务的设计、制造、测试及交付为基础确定的 (i) 其设计标准、制造流程、程序及质保方案；(ii) 在本合同中明确列明且在本合同生效之日有效的相应行业规范、准则与标准；(iii) 适用法律；以及(iv) 在本合同中经双方协商一致的书面条款及规范。

11.2. Notwithstanding any other provision of the Contract, the parties shall at all times comply with all Applicable Law in the performance of the Contract, except for Seller to the extent that such compliance is penalized under or otherwise violates the laws of the U.S. or EU.

11.2. 不论本合同任何其他规定，各方应当在履行本合同的过程中始终遵守所有适用法律，除非卖方因遵守适用法律而受到美国或任何欧盟的法律的惩罚或以其他方式违反美国或任何欧盟的法律。

11.3. The Contract Price, Delivery and performance dates and any performance guarantees are based upon the terms of the Contract and Applicable Laws, standards, and regulations in effect on the date of Seller's proposal or quotation and will be equitably adjusted to reflect additional costs or obligations incurred by Seller Group resulting from any change in, or change in interpretation of, the Contract terms as proposed by Seller, Applicable Laws, or Buyer's or Site owner's cyber policies and procedures agreed by Seller in writing after the date of Seller's

proposal or quotation. In the event any such change prevents Seller Group from executing its obligations without breaching Applicable Law or makes Seller's execution of its obligations unreasonably burdensome or unbalanced, Seller shall also have the right to withdraw the Proposal or terminate the Contract without any liability.

11.3. 合同价款、交付、履行日期和任何履行担保均基于本合同的条款以及卖方提出投标文件或报价之日有效的适用法律、标准和法规，并将合理地进行调整，以反映卖方集团因任何以下内容的变更而产生的任何附加成本或义务：在卖方提出投标文件或报价之日后，卖方提议的本合同条款、适用法律、或经卖方书面同意的买方或现场所有方的网络政策和流程的变更，或针对前述各项内容的解释的变更。若上述的任何变更使得卖方集团在不违反适用法律的情况下无法继续履行其义务或使得卖方继续履行义务成为其不合理的负担或不公平，卖方有权撤销其投标文件或解除本合同，而不承担任何责任。

11.4. Unless otherwise agreed in the Contract, Seller shall be responsible for timely obtaining the permits, licenses, and authorizations required for Seller Group to meet the requirements of the Contract, except that Buyer shall be responsible for timely obtaining any required permits, licenses, and authorizations that can only be obtained by Buyer Group. Buyer and Seller shall provide each other reasonable assistance in obtaining such required authorizations.

11.4. 除非在本合同中另有约定，卖方应当负责及时获取卖方集团用以满足本合同要求所需的许可、证照和授权；但是，买方应负责及时获取仅能由买方集团取得的必要许可、证照和授权。买卖双方应当合理协助对方取得该等所需的授权。

11.5. Buyer agrees to comply with all applicable export laws and regulations, including those of the United States, to ensure Products, Parts, and technology provided by Seller under the Contract are not used, sold, disclosed, released, transferred, or re-exported in violation of such laws and regulations. Buyer shall not directly or indirectly export, reexport, or transfer any items or technology provided by Seller under the Contract to: (a) any country or region comprehensively sanctioned by the U.S. government, including for the purposes of the Contract, North Korea, Iran, Cuba, Syria and the Crimea region or to a resident or national of any such countries; (b) any person or entity listed on the "Entity List" or "Denied Persons List" maintained by the U.S. Department of Commerce, the list of "Specifically Designated Nationals and Blocked Persons" maintained by the U.S. Department of Treasury, or any other applicable prohibited party list of the U.S. Government; or (c) an end-user engaged in any nuclear, chemical, or biological weapons activities. If Products or Parts to be exported outside the U.S. and/or EU are considered or likely to be considered as "dual use", Buyer shall (or shall cause the end user of the Products/Parts to) provide to Seller, promptly upon its request, an "End User Statement" in accordance with the applicable legal requirements. Seller shall not be liable to Buyer for any delay and shall not be in breach of its obligations in the event of Buyer's failure or delay in providing such statement.

11.5. 买方同意遵守所有适用的出口法律、法规（包括美国的适用法律、法规），以确保卖方在本合同下提供的产品、零部件和技术的使用、出售、披露、公开、转让或再出口不会违反该等法律、法规。买方不得直接或间接地将卖方在本合同下提供的任何物品出口、再出口或转让至：(a) 受美国政府全面制裁的任何国家或地区，就本合同而言，包括朝鲜、伊朗、古巴、叙利亚和克里米亚地区以及该等国家的居民或国民；(b) 由美国商务部维护的“管制实体清单”或“被拒贸易方清单”、由美国财政部维护的“特别指定国民和被封锁人员”列表或任何其他适用的美国政府出具的被禁止方名单中列出的任何人或实体；或(c) 参与任何核、化学或生物武器活动的最终用户。若被出口至美国以外的地区的产品或零部件被认为或可能会被认为属于“军民两用”，经卖方请求，买方应当（或者应使得产品/零部件的最终用户）依照适用的法律要求及时向卖方提供一份“最终用户声明”。如买方未提供或迟延提供该等“最终用户声明”，卖方对任何迟延履行不承担任何责任，且不应被视为卖方违约。

11.6. The parties agree to comply with all Applicable Data Protection Laws. The parties commit to enter into a Data Processing Agreement (DPA) when needed. Further, the parties agree to enter into EU Model Clauses when required by EU law or ensure that equivalent safeguards are in place. If intended actions by one or more parties require further agreements and/or other actions to comply with the Applicable Data Protection Laws, the parties agree to mutually collaborate and sign them and/or take actions as required.

11.6. 双方同意遵守所有适用的数据保护法律。双方承诺在需要时签订数据处理协议（DPA）。此外，双方同意在欧盟法律要求时签订欧盟示范条款或

确保存在等效的保障措施。如果一个或多个当事方的预期行动需要进一步的协议和/或其他行动来遵守适用的数据保护法律，则双方同意相互合作并签署该等协议和/或采取必要的行动。

12. ENVIRONMENT, HEALTH, SAFETY AND SECURITY (EHSS)

12. 环保、健康、安全及安保

12.1. Buyer shall take all actions necessary to provide a safe, healthy, and secure work environment, including transportation and accommodation if applicable, for Seller Group personnel. Buyer shall inform Seller of any known risks, hazards, or changed conditions impacting worker health, safety, or the environment, including the presence or potential presence of Hazardous Materials, and provide relevant information, including safety data sheets, Site security plans, risk assessments, and job hazard analyses.

12.1. 买方应当采取一切必要行动为卖方集团的人员提供一个安全、健康及有保障的工作环境，包括交通和食宿，如适用。买方应当通知卖方任何已知的危险、危害或影响员工健康、安全或环境的任何条件变化，包括存在或潜在存在任何危险物质，并提供相关的信息，包括安全数据列表、现场安保计划、危险评估以及工作危险性分析。

12.2. To evaluate risks associated with the provision of Services and performance under the Contract, Buyer shall provide Seller Group with reasonable access to review the Site and related equipment. If Seller's work at the Site is subject to local, provincial, or national EHS legal requirements that are not reasonably available, Buyer shall notify and provide copies to Seller.

12.2. 为了评估本合同项下与服务提供及履行有关的危险，买方应当向卖方集团开放审核现场及相关设备的合理权限。如果卖方在现场的工作受限于地方、省或国家的环境健康安全的法律要求，而卖方在当时无法合理知悉，买方应当通知卖方并向其提供副本。

12.3. If Seller or Seller's representative believes in good faith that Site conditions, Seller transportation, or accommodation provisions, or the actions of others threaten the health, safety, or security of Seller Group personnel or the environment, Seller or its representatives may, in addition to other rights or remedies available, STOP WORK, evacuate some or all of its personnel, suspend performance of all or any part of the Contract, and/or remotely perform or supervise work. If Seller exercises its rights under this Article 12.3, it shall give prompt notice to Buyer, and the parties shall work cooperatively to correct the conditions or actions prompting the STOP WORK. The parties agree there shall be no retaliation taken against any person who invokes their right under this provision to STOP WORK. Any delay resulting from Seller Group's exercise of its rights under this Article 12.3 constitute an excusable delay and Article 3 shall apply.

12.3. 如果卖方或卖方的代表善意地确信现场的条件、卖方的交通或住宿条件，或他人的行为威胁到了卖方集团人员的健康、安全或安保或环境，卖方或其代表可在其他权利或救济方式之外，**停工**，疏散部分或全部的人员，中止履行本合同的全部或部分，并/或远程进行或监督工作。如果卖方向行使在本 12.3 条下的权利，其应当及时通知买方，双方应当共同协作更正引起**停工**的条件或行为。各方同意不得对根据本条款**停工**的任何人员采取报复。由于卖方集团行使其在本 12.3 条下的权利导致的任何延迟，均构成可免责的延迟，应适用第 3 条。

12.4. To the full extent permitted by Applicable Law, Buyer agrees that it is the generator, and shall be solely responsible for the storage, transportation, disposal, and remediation of all Hazardous Materials or waste related to or arising from the performance of Services at Buyer Group Sites, including (without limitation) any removed from Seller's equipment. Prior to the transportation and disposal of waste materials by Buyer, Seller shall properly manage and collect on site all Hazardous Materials resulting from the Services in accordance with Applicable Law and Buyer's written requirements. If Seller Group encounters any Hazardous Materials, it may suspend work pending Buyer elimination of the hazardous condition. If any Seller equipment or Buyer equipment destined for a Seller facility is contaminated with Hazardous Materials, Buyer shall assume sole responsibility for decontaminating such equipment and returning it in the same condition received to allow for safe handling and transportation in compliance with Applicable Law. If any such Hazardous Materials cause an increase in Seller's cost or time, Seller shall be entitled to an equitable adjustment in price and schedule.

12.4 在适用法律允许的最大范围内，买方同意其是与在买方集团现场提供服务相关的或由其产生的危险物质或废料（包括但不限于从卖方设备上移除的任何危险物质或废料）的制造者，并将独立负责对上述危险物质或废料进行仓储、运输、处理以及补救。在买方运输并处理废弃物前，卖方

应当根据适用法律和买方的书面要求，在现场妥善管理并收集所有由服务产生的危险物质。如果卖方集团遭遇任何危险物质，其可中止工作直至买方消除该危险情况。如果任何卖方设备或将运送至卖方设施的买方设备被危险物质污染，买方应当根据适用法律独立承担消除该设备污染并将其与接收时一致的状态归还的责任，使其可以安全地操作和运输。如果任何上述危险物质导致了卖方成本或时间的增加，卖方应当有权公平调整价格和时间表。

13. ADDITIONAL EHSS PROVISIONS APPLICABLE TO SERVICES

13. 适用于服务的环保、健康、安全及安保附加条款

13.1. Seller Group personnel shall not be required to work in excess of any time restriction under Applicable Law. Seller Group personnel will have at least one day of rest in any seven consecutive days; provided, the parties may agree upon exceptions consistent with Seller's working time policy.

13.1 卖方集团人员不应当被要求在超出适用法律规定的时间限制之外的时间工作。除非双方达成符合卖方工作时间政策的例外，卖方集团人员在任何连续的七天之中应当至少获得一天的休息。

13.2. Buyer shall provide medical care and facilities at the Site consistent with international industry standards. If Seller Group's personnel require urgent medical attention, Buyer shall make its medical facilities available to such persons as necessary. To the extent Buyer cannot supply necessary urgent medical attention at the Site, any Buyer Group's site, or while working offshore, Buyer shall provide for transport of Seller Group's personnel and access of such personnel to the nearest suitable urgent care facility. For offshore or remote work, Buyer shall be responsible for medical evacuation of Seller Group's personnel from the Site to the departure point on the mainland or Buyer's designated medical services provider.

13.2 买方应当在现场提供符合国际行业标准的医疗服务及设备。如果卖方集团人员需要紧急的医疗救助，买方应当根据其需求向该人员提供医疗设备。若买方不能在其现场、任何买方集团的场地或在海域工作时提供必要的紧急医疗救助，买方应当向卖方集团人员提供交通工具并使该人员进入最近的适当的急救机构。对于在海域或远程进行的工作，买方应当负责卖方集团人员从现场至陆地启程点或买方指定医疗服务提供方之间的医疗运送。

13.3. Buyer shall transport Seller Group's personnel, equipment, and materials, including medi-vac, to and from all offshore locations and to such other job Sites as agreed, in compliance with Applicable Law and international industry standards regarding qualified personnel, safe operation, and maintenance. Buyer agrees to make, and shall procure that Buyer Group makes, such equipment and information relating to its operation and maintenance available to Seller. Buyer shall provide personal protective equipment required during use of Buyer provided transportation to and from the offshore work and such other specialized equipment as agreed between the parties.

13.3 买方应当根据与合格的人员及安全操作与维护相关的适用法律和国际行业标准，运输卖方集团的人员、设备和物资（包括航空医疗救护机）往返于海域地点以及将其运输至双方同意的其他工作现场。买方同意，并应使得买方集团同意，向卖方提供与操作和维护相关的设备和信息。买方应当提供在使用由买方提供的交通工具往返海域工作场所期间需要的个人防护设备以及双方同意的其他专业设备。

13.4. Buyer shall provide, at no cost to Seller, accommodation for Seller Group's personnel, which offers a reasonable degree of comfort, is consistent with international industry standards, and is at least comparable to that furnished to Buyer's management and technical personnel. Buyer shall provide telephone and computer internet connectivity to Seller Group's personnel at said accommodations.

13.4 买方应当无偿向卖方集团的人员提供住宿及伙食安排，且应当达到符合国际行业标准的合理的舒适程度，至少应当与提供给买方管理层和技术人员的住宿和伙食保持一致。买方应当在上述住宿中向卖方集团人员提供电话及电脑网络连接。

14. CONFIDENTIALITY

14. 保密

14.1. "Confidential Information" means pricing for Products, Parts and Services, and/or any information that is designated in writing as "confidential" or "proprietary" at the time of disclosure, or orally designated as "confidential" or "proprietary" and confirmed in writing within ten (10) days after oral disclosure. All information concerning or embedded in the software (including but not limited to source code, object code, and training materials), Documentation, and third-

party software is confidential and the property of Seller (or its suppliers) and shall be considered Seller's (or its suppliers') Confidential Information whether or not the information is marked as such.

14.1 “保密信息”是指产品、零部件和服务的定价，和/或在披露时以书面方式表明为“保密”或“专有”的任何信息，或在披露时以口头方式表明为“保密”或“专有”并在口头披露后十日内以书面方式确认的任何信息。与软件有关的或嵌入软件的全部信息（包括但不限于源代码、目标代码和培训材料）、文档和第三方软件均为保密信息，且均为卖方（或其供应商）的财产，且该等信息应被视为卖方（或其供应商）的保密信息，无论其是否被如此标识。

In granting cyber and/or unescorted physical access to Products and/or Parts, Seller may provide log-on codes, log-on identifications, passwords, and/or other individualized explicit access permissions (collectively "Access Codes"). Access Codes are subject to the confidentiality provisions of the Contract and shall not be disclosed or shared with any other person other than authorized users.

授予产品和/或零部件网络和/或无人陪同的物理访问权限时，卖方可提供登录代码、登录 ID、密码和/或其他个性化的显式访问许可（合称“访问权限代码”）。访问权限代码受限于本合同的保密条款，不得向授权用户以外的任何其他人披露或与之共享。

Confidential Information shall not include information that: (i) is or becomes generally available to the public other than from disclosure by the receiving party's Group; (ii) is or becomes available to the receiving party's Group on a non-confidential basis from a source other than the disclosing party and, after due inquiry, that source is not subject to a confidentiality obligation to the disclosing party; or (iii) is independently developed by the receiving party's Group without reference to the disclosing party's Confidential Information, as evidenced by written documents.

保密信息不包括以下信息：(i) 现在或将来因接收方集团披露以外的原因被公众广泛知悉的信息；(ii) 现在或将来由接收方集团以非保密性的方式从披露方之外的来源获取的信息，且经过合理调查，该来源无需向披露方承担保密义务；或 (iii) 由接收方集团在未参考披露方的任何保密信息的情况下独立开发的信息，并有书面文件对此予以证明。

14.2. The parties shall: (a) use, reproduce, or disclose the other party's Confidential Information only in connection with the Contract and permitted use(s) and maintenance of Products, Parts, and Services; (b) take reasonable measures to protect the confidentiality, and prevent disclosure and unauthorized use of the Confidential Information; and (c) not disclose Confidential Information to the other party's competitors.

14.2. 各方应：(a) 仅为与本合同以及产品、零部件和服务被允许的使用和维护相关之事宜而使用、复制或披露另一方的保密信息；(b) 采取合理的措施维持保密性，并防止披露和未经授权使用保密信息的行为；且(c) 不向另一方的竞争对手披露保密信息。

14.3. A party may disclose Confidential Information: (a) to any member of its Group who has a need to know such information to perform the Contract or use and maintain any Products, Parts, or Services; provided that such member is bound in writing to confidentiality obligations and use restrictions at least as restrictive as in the Contract; and (b) to comply with a legal obligation, but only after promptly notifying the disclosing party of its disclosure obligation so that the disclosing party may seek an appropriate protective order. Buyer shall not disclose Confidential Information to Seller unless required for Seller to perform under the Contract. Buyer warrants that it has the right to disclose any such information and shall indemnify Seller Group from any Claims resulting from improper or unauthorized disclosure.

14.3. 一方可在以下情况披露保密信息：(a) 向其集团内的为履行本合同或使用与维护产品、零部件或服务而有必要知悉保密信息的任何成员披露，前提是该成员以书面形式受限于至少与本合同具有同等限制性的保密义务和使用限制；且(b) 为遵守法律义务而披露，但仅可在其及时告知披露方其披露义务、以使披露方可以寻求适当保护令之后进行披露。除非为卖方履行本合同而必需，买方不应当向卖方披露保密信息。买方保证其享有披露该等信息的权利并将就任何由不当或未经授权的披露引起的索赔赔偿卖方集团。

14.4. Neither party shall make any public announcement about any aspect of the Contract or related documents or information without prior written approval of the other party.

14.4. 在未经另一方事先书面同意的情况下，任意一方均不得就本合同或相关文件或信息的任何方面发布任何公开的声明。

14.5. The confidentiality and use restrictions of this Article 14 shall survive any termination of the Contract for ten (10) years. Each party shall Indemnify the other for failure to comply with this Article 14.

14.5. 本第 14 条的保密性和使用限制应当在本合同终止（不论终止原因）后十年内继续有效。任何一方均应在违反本第 14 条时赔偿另一方。

15. INTELLECTUAL PROPERTY

15. 知识产权

15.1. Seller shall Indemnify Buyer from any rightful Claims of third parties that: (a) the software infringes such third party's U.S. or EU patent; or (b) the Products or Parts manufactured by Seller or its Affiliates (excluding software and third-party software) infringe any utility patent of the U.S., EU, or the country of initial installation (if set forth in the Contract), provided that in any such case of subsection (a) and/or (b) above: (1) Buyer promptly notifies Seller in writing of any such Claim; (2) Buyer makes no admission of liability and does not take any position adverse to Seller regarding such Claim and gives Seller sole authority, at Seller's expense, to direct and control all defense, settlement, and compromise negotiations; and (3) Buyer provides Seller with full disclosure and assistance that may be reasonably required to defend any claim and any related negotiations.

15.1. 卖方同意就由第三方提出的(a) 软件侵犯该第三方在美国、欧盟的专利权；或(b)卖方或其关联方生产的产品或零部件（软件和第三方软件除外）侵犯美国、欧盟或（如在本合同中有规定的）首次安装国家的任何发明专利的任何正当索赔赔偿买方，条件是发生上述(a)和/或(b)项描述的情况后：(1) 买方立即书面通知卖方任何该等索赔；(2) 买方没有承认任何责任，也没有就该索赔采取任何对卖方不利的立场，并给予卖方由其自行承担费用且独自全权指示并控制全部抗辩、和解以及妥协谈判的权利；并且(3) 买方向卖方提供对该索赔进行抗辩以及进行任何相关谈判所合理需要的完全的披露与协助。

15.2. Article 15.1 shall not apply, and Seller shall have no obligation or liability with respect to any claim based upon: (a) any Products, Parts, or Services that have been altered, modified, or revised; (b) the combination, operation, or use of any Products, Parts, or Services with other products, services, systems, or data when such combination is part of any allegedly infringing subject matter; (c) failure of Buyer Group to implement any update provided by Seller Group that would have prevented the claim; (d) unauthorized use of Products, Parts, or Services, including without limitation a breach of the provisions of the Contract; (e) Products, Parts, or Services made or performed to Buyer Group's specifications or design; or (f) any Buyer Group data.

15.2. 对基于下列理由的任何索赔，第15.1条不应适用，且卖方不承担任何义务或责任：(a)任何被改变、改良或修改过的产品、零部件或服务；(b)任何产品、零部件或服务与其他产品、服务、系统或数据的结合、运作或使用，且这样的结合被认为是任何涉嫌侵权权的事项的一部分；(c)买方集团未能安装卖方集团提供的本可以避免该索赔的更新；(d)对产品、零部件或服务的未授权使用，包括但不限于违反本合同条款的使用；(e)根据买方集团的规格或设计生产的产品、零部件或提供的服务；或(f)任何买方集团的数据。

15.3. If any Products, Parts, or Services (excluding, for purposes of this Article 15.3, any third-party software) become the subject of a claim or, in Seller's sole judgment, are likely to become the subject of a claim, Seller may at its option: (a) procure for Buyer the right to continue using the Product, Part, or Service, or portion thereof; or (b) modify or replace it in whole or in part to make it non-infringing; provided, that if the alternatives described in subsection (a) and/or (b) are not commercially reasonable, then Seller may take back Products or Parts, discontinue Services, terminate the license to any affected software, and refund to Buyer a pro-rated portion of any unearned pre-paid fees received by Seller attributable to the infringing Product, Part, or Service (using a five-year straight-line depreciation schedule beginning on the effective date of the Contract).

15.3. 如果任何产品、零部件或服务（就本第15.3条而言，不包括任何第三方软件）成为索赔的标的，或卖方自行认为可能成为索赔的标的，卖方有权选择：(a)使买方取得继续使用该产品、零部件或服务或其任何部分的权利；或 (b)全部或部分修改或替换该等产品、零部件或服务，使之不再侵权；如果上述(a)和/或(b)项所述的替代方案在商业上不合理，则卖方可回收相关产品、零部件、停止服务、终止受影响软件的许可，并按比例向买方退还卖方已收到的预付费用中侵权产品、零部件或服务相应的款项（按自本合同生效日起的五年直线折旧法计算）。

15.4. THE FOREGOING ARTICLES 15.1, 15.2, AND 15.3 STATE SELLER GROUP'S ENTIRE AND EXCLUSIVE LIABILITY, AND BUYER GROUP'S ENTIRE AND EXCLUSIVE REMEDY, FOR ANY INTELLECTUAL AND INDUSTRIAL PROPERTY RIGHTS INFRINGEMENT.

15.4 前述第 15.1 条、第 15.2 条和第 15.3 条为卖方集团关于知识产权及工业产权侵权的全部且排他的责任，以及买方集团关于知识产权及工业产权侵权的全部且排他的救济。

15.5. Each party shall retain ownership of all Confidential Information and intellectual property it had prior to the negotiations of the Contract. Any and all new intellectual property conceived, created, or provided by Seller Group under the Contract, whether alone or with any contribution from Buyer Group, shall be owned exclusively by Seller or other members of Seller Group, as the case may be. Without limiting the foregoing, Buyer agrees that Seller Group or its suppliers own all proprietary rights, including but not limited to any patent, copyright, trade secret, trademark, and other intellectual property rights, in and to the software, Documentation, and third-party software, including any Derivative Works thereof regardless of the source of development, including but not limited to cases where Buyer engages a third party to perform such development. Buyer hereby (a) agrees that all such rights are automatically vested in Seller (or its Affiliates, in Seller's sole discretion) or in the owner of third-party software, as applicable, and may be used by Seller Group (or the owner of the third-party software, as the case may be) without limitation and without any obligation to Buyer on behalf of Seller Group and/or such other relevant owner; and (b) irrevocably transfers and assigns, and agrees to transfer and assign and/or cause other members of Buyer Group or a third party to transfer and assign, as instructed by Seller all rights, title, and interests throughout the world in and to such new intellectual property and Derivative Works, including but not limited to all rights in and to any inventions and designs embodied in such new intellectual property and Derivative Works or its associated technology. If by operation of law such rights are not automatically transferred and assigned as provided above, Buyer shall, and shall cause other members of Buyer Group and any third party (as applicable) to, timely execute and deliver to Seller such assignments and other documentation, and take such other action as may be requested by Seller to perfect and protect Seller's (or the third-party software owner's) rights in and to any such new intellectual property and Derivative Works and to carry out the assignments effected by this Article 15.5 at no cost to Seller. To the extent that this Article 15.5 does not provide Seller with full intellectual property rights, moral rights, or any other rights, title, and interests in and to any such new intellectual property, Derivative Works, or associated technology, Buyer hereby grants Seller Group a perpetual, irrevocable, fully paid, royalty free worldwide license to reproduce, modify, adapt, enhance, improve, create Derivative Works from, distribute, publicly display, publicly perform, use, make, have made, offer for sale, sell or otherwise dispose of, import, and practice any method or process relating to any such new intellectual property, Derivative Works, and associated technology, by all means now known or later developed, with the right to sublicense (through multiple tiers) each and every such right. Buyer shall procure that, to the extent permissible by Applicable Law, Buyer Group waives any moral rights it acquires in any such new intellectual property and Derivative Works and agrees and forever waives any right to assert any claim contrary to this Article 15.5. Seller shall grant Buyer use rights in accordance with the terms and conditions of the Software Addendum to utilize Seller's intellectual property embedded in the Products or Parts furnished by Seller Group, solely for standard internal use, operation, and maintenance of the Products and/or Parts, as applicable, by Buyer. Such license shall not give Buyer the right to manufacture and/or have manufactured such Products and/or Parts. Notwithstanding this Article 15.5, Buyer's rights to software, including embedded software, licensed to Buyer are subject to and limited by the terms of the Software Addendum.

15.5 各方应保留其在本合同开始谈判之前拥有的全部保密信息和知识产权的所有权。本合同项下无论是卖方集团独立还是借助于买方集团提供的帮助而构想、创造或提供的任何及所有新产生的知识产权，应由卖方或卖方集团其他成员（视情况而定）专有。在不限制上述规定的前提下，买方同意，卖方集团或其供应商拥有软件、文档和第三方软件（包括前述各项的衍生作品）上及其内的所有专有权利，包括但不限于任何专利、著作权、商业秘密、商标权和其他知识产权，无论该等作品如何创作，包括但不限于买方聘用第三方进行该等创作的情况。买方特此(a) 同意上述所有权利自动归属于卖方（或其关联方，由卖方自行决定）或归属于第三方软件所有人（若适用），且可由卖方集团（或第三方软件所有人，视情况而定）代表卖方集团和/或其他该等所有人使用，不受任何限制且无需向买方承担任何义务；及 (b)根据卖方的指示，不可撤销地让与和转让、并同意让与和转让和/或使得买方集团的其他成员或第三方让与和转让上述新产生的知识产权和衍生作品在全球范围内的全部权利、所有权和利益，包括但不限于该等新产生的知识产权、衍生作品或其相关技术上及其内包含的任何发明和设计所享有的全部权利。如果依法规定，上述权利并未如上述约定自动让与和转让，买方自身应并应使得买方集团的其他成员和任何第三方（如

适用)及时签署并向卖方交付该等转让书以及其他文件,并采取卖方可能要求的其他行为,以使卖方(或第三方软件所有人)就上述新产生的知识产权和衍生作品享有的权利合法有效并得到保护,以及进行本第 15.5 条赋予效力的转让,卖方无需就此承担费用。如果本第 15.5 条规定无法为卖方提供任何上述新产生的知识产权、衍生作品或相关技术上及其内的全部知识产权、精神权利(人身权)或任何其他权利、所有权和利益,则买方特此向卖方集团授予一项永久的、不可撤销的、费用已付清的、无许可费的、全球范围内的许可,以所有现在已知或将来开发的方式,就任何上述新产生的知识产权、衍生作品或相关技术有关的任何方法或流程进行复制、修改、改编、加强、改进、创作衍生作品、分发、公开展示、公开演示、使用、制作、使其被制作、要约出售、出售或以其他方式处置、引入和实践,并享有就上述各项及全部权利进行(多级)分许可的权利。在适用法律许可的范围内,买方应使得买方集团放弃其在该等新产生的知识产权和衍生作品中取得的精神权利(人身权),同意永久放弃提出与本第 15.5 条约定相反的主张的权利。卖方应当根据软件附录的条款和条件向买方授予使用权,以使其为产品/零部件的标准内部使用、操作及维护之目的(按适用情形)使用卖方集团提供的产品或零部件内嵌的卖方知识产权。该等授权不应当授予买方制造和/或允许他人制造产品/零部件的权利。尽管存在本第 15.5 条的规定,买方对许可给买方的软件(包括嵌入式软件)的权利应遵循软件附录的条款,并受其限制。

15.6. Buyer agrees that Seller may create, receive, maintain, transmit, process and otherwise have access to machine, technical, system, usage, and related information and data, including, but not limited to, information and data about Buyer's products, services, systems, and software, that is gathered periodically to facilitate the provision of Products, Parts, Services, support, consulting, training, and other services to Buyer (if any), and to verify compliance with the terms of the Contract. Seller and its Affiliates may use such information and data to provide, develop, or improve their Products, Parts or Services.

15.6. 买方同意卖方可以创造、接受、维持、转移、加工或以其他方式访问出于以下目的而定期收集的机器、技术、系统、用法及相关信息 & 数据(包括但不限于与买方产品、服务、系统和软件相关的信息 & 数据),即为便于向买方提供产品、零部件、服务、支持、咨询、培训和其他服务(如有),以及为确认与本合同条款是否相符。卖方及其关联方可使用该等信息 & 数据来提供、发展或改进其产品、零部件或服务。

16. INDEMNITY AND LIMITATION OF LIABILITY

16. 赔偿与责任限制

16.1. The provisions of this Article 16 shall apply to the maximum extent permitted by Applicable Law and, unless otherwise expressly stated, prevail over any conflicting terms of the Contract.

16.1 本第 16 条的规定在适用法律允许的最大范围内予以适用,并且除非另有明确说明,若任何本合同的条款与本条规定存在冲突,应以本条规定为准。

16.2. (a) Seller agrees to Indemnify Buyer Group from and against any and all Claims for bodily injury, illness, or death suffered by any Seller Group's personnel, and/or for damage to or loss of any property of any Seller Group member (whether owned, hired, or leased, but excluding property leased to Buyer Group) arising out of or in connection with the Contract, REGARDLESS OF CAUSE OR ACTION.

16.2. (a) 针对由本合同引起的或与之相关的卖方集团任何人员遭受的人身伤害、疾病或死亡,和/或卖方集团任何成员的任何财产(无论其所有的、租用的或租赁的财产,但租赁给买方集团的财产除外)的损害或损失的任何和全部索赔,卖方同意赔偿买方集团, **不论事由或行为**。

(b) Buyer agrees to Indemnify Seller Group from and against any and all Claims for bodily injury, illness, or death suffered by any Buyer Group's personnel, and/or for damage to or loss of any property of any Buyer Group member (whether owned, hired, or leased, and including the Products and Parts (after Delivery), the Site, and any facilities or property thereon), arising out of or in connection with the Contract, REGARDLESS OF CAUSE OR ACTION.

(b) 针对由本合同引起的或与之相关的买方集团任何人员遭受的人身伤害、疾病或死亡,和/或买方集团任何成员的任何财产(无论其所有的、租用的或租赁的财产,包括(交付后的)产品和零部件、现场及其上的任何设施或财产)的损害或损失的任何和全部索赔,买方同意赔偿卖方集团, **不论事由或行为**。

16.3. (a) Seller agrees to Indemnify Buyer Group from and against any rightful Claims of third parties on account of bodily injury, illness or death, or damage to or loss of property, to the extent resulting directly from the negligence of Seller

Group in connection with performance of the Contract, which indemnity is subject to and limited by the terms of the Contract, including but not limited to Articles 15, 16, and 17 of these Terms and Conditions, and Article 9 of the Software Addendum.

16.3. (a) 第三方因人身伤害、疾病、死亡、财产损失或损失而提出任何正当索赔的,若该索赔由卖方集团的与履行本合同相关的过失所直接造成,卖方同意赔偿买方集团,该等赔偿适用并受限于本合同的条款,包括但不限于本条款和条件第 15 条、第 16 条和第 17 条,以及软件附录第 9 条。

(b) Buyer agrees to Indemnify Seller Group from and against any rightful Claims of third parties on account of bodily injury, illness or death, or damage to or loss of property, to the extent resulting directly from the negligence of Buyer Group in connection with performance of the Contract.

(b) 第三方因人身伤害、疾病、死亡、财产损失或损失而提出任何正当索赔的,若该索赔由买方集团的与履行本合同相关的过失所直接造成,买方同意赔偿卖方集团。

(c) In the event the injury or damage to third parties is caused by the joint or concurrent negligence of the parties or their respective Groups, each party shall bear the liability of such injury or damage proportionally to its Group's negligence. For the avoidance of doubt, no members of either party's Group shall be considered third parties and, for purposes of Seller's indemnity obligation in Article 16.23(a), no part of the Site or any property or facilities thereon shall be considered third-party property, and the Site owner and its partners, Affiliates, and contractors/subcontractors shall not be considered third parties. The reciprocal indemnities in this Article 16.3 shall apply only if the indemnified party: (1) promptly notifies the other party in writing of the third party Claim; (2) makes no admission of liability, does not take any position adverse to the other party and gives the other party sole authority to direct and control all defense, settlement, and compromise negotiations; and (3) provides the other party with full disclosure and assistance reasonably required to defend such Claim.

(c) 如果对第三方造成的伤害或损害是因各方或其各自的集团共同或同时的过失所致,各方应就其集团的过失按比例分担该伤害或损害的责任。为免疑义,任何一方的集团成员都不应被视为第三方,且就第 16.3(a)条项下卖方的赔偿义务而言,现场或现场的任何财产或设施的任何部分均不得被视为第三方财产,现场所有方及其合作伙伴、关联方及承包商/分包商均不得被视为第三方。第 16.3 条中的相互赔偿仅在下列情形下方可适用:(1)受偿方及时将第三方的索赔以书面形式通知另一方;(2)受偿方没有承认任何责任,也没有采取对另一方不利的立场,并给予该方独自全权指示并控制全部抗辩、和解以及妥协谈判的权利;以及(3)向另一方提供对该索赔进行抗辩所合理需要的完全的披露与协助。

16.4. Except only as provided in Article 16.2(a) but notwithstanding anything to the contrary herein, in the event the Site is offshore, Buyer assumes sole responsibility for and shall Indemnify the Seller Group (to the maximum extent permitted under Applicable Law) from and against any and all Claims asserted by or in favor of any person or party resulting from pollution, contamination, or blow-out of any kind, including costs of pollution control, removal, spills, leakage, and clean-up. The above indemnity applies REGARDLESS OF CAUSE OR ACTION and even if the Claim is on account of any defect in the Products, Parts, or Services; but it shall not apply to surface pollution or spillage of fuels, lubricants, sewage, or garbage to the extent such surface pollution or spillage originates from Seller Group's property while such property is in Seller Group's sole care, custody, and control.

16.4. 仅除第 16.2(a)条的规定外,即使本合同载有任何相反规定,如果现场位于海域,就因污染、致污或任何类型的喷发而由任何人或任何实体提出的或对其有利的任何及全部索赔,包括污染控制、移除、溢出、泄漏及清除的费用,买方应独立承担全部责任并(在适用法律允许的最大范围内)就该索赔对卖方集团进行赔偿。**不论事由或行为**,上述赔偿均得以适用,即使该索赔因产品、零部件或服务的任何缺陷所致;但该赔偿不得适用于表面污染或燃油、润滑油、污水或垃圾的表面泄漏,如该等表面污染或泄漏来自处于卖方集团独立照料、保管或控制的卖方集团财产。

16.5. EXCEPT ONLY FOR SELLER'S OBLIGATIONS IN ARTICLE 11.2 (TO THE EXTENT OF FINES AND PENALTIES IMPOSED BY A GOVERNMENT AUTHORITY AS A RESULT OF SELLER'S VIOLATION OF APPLICABLE LAW) AND EXCEPT AS OTHERWISE SET FORTH IN THE SOFTWARE ADDENDUM, AND TO THE EXTENT PERMITTED UNDER APPLICABLE LAW, SELLER GROUP'S TOTAL LIABILITY FOR ANY AND ALL CLAIMS OF ANY KIND, REGARDLESS OF CAUSE OR ACTION (INCLUDING NEGLIGENCE), ARISING OUT OF OR RELATED TO THE CONTRACT, OR ITS PERFORMANCE OR BREACH, INCLUDING WITHOUT LIMITATION WARRANTY AND TERMINATION, SHALL NOT UNDER ANY CIRCUMSTANCES EXCEED (a) THE CONTRACT PRICE, OR

(b) IF BUYER PLACES MULTIPLE ORDERS UNDER THE CONTRACT, THE PRICE OF EACH PARTICULAR ORDER FOR ALL CLAIMS ARISING FROM OR RELATED TO THAT ORDER, AND TEN THOUSAND U.S. DOLLARS (USD \$10,000) FOR ALL CLAIMS NOT PART OF ANY PARTICULAR ORDER. SELLER GROUP SHALL HAVE NO LIABILITY FOR ADVICE OR ASSISTANCE GRATUITOUSLY PROVIDED BY SELLER GROUP BUT NOT REQUIRED PURSUANT TO THE CONTRACT. SUBJECT TO THE STATUTES OF LIMITATIONS UNDER PRC LAWS, ALL OF SELLER GROUP'S LIABILITIES SHALL TERMINATE AT THE END OF THE RELEVANT WARRANTY PERIOD, EXCEPT FOR CLAIMS TIMELY COMMENCED BY BUYER IN ACCORDANCE WITH THE CONTRACT.

16.5. 除仅在第 11.2 条（在政府机关因卖方违反适用法律而对其施以罚金与罚款的范围内）中规定的卖方义务外，且除软件附录另有约定，不论事由或行为（包括过失），且在适用法律允许的范围，卖方集团因本合同或其履行或违约产生的或与之相关的任何及所有类型的索赔的全部责任（包括但不限于质保及终止），在任何情况下均不得超过(a) 合同价款，或(b) 若买方在本合同项下提交了数个订单，就某特定订单而产生的或与之相关的所有索赔，该订单价款，且就不属于任何特定订单的所有索赔，一万美元（10,000 美元）。卖方集团不对其免费提供的本合同中未要求的建议或协助承担任何责任。受限于中国法律下的法定时效的规定，卖方集团的所有责任将在相关质保期结束后终止，但买方根据本合同及时提起的索赔除外。

16.6. NOTWITHSTANDING ANYTHING TO THE CONTRARY, AND EXCEPT ONLY TO THE EXTENT OF AGREED LIQUIDATED DAMAGES, ANY PREDETERMINED TERMINATION FEES DUE TO SELLER UNDER THE CONTRACT, OR IN THE EVENT OF BUYER'S BREACH OF ITS CONFIDENTIALITY OBLIGATIONS OR LICENSE RIGHTS AND RESTRICTIONS UNDER THIS CONTRACT, SELLER SHALL INDEMNIFY BUYER GROUP FROM AND AGAINST ANY AND ALL CLAIMS FOR CONSEQUENTIAL LOSS OF SELLER GROUP; AND BUYER SHALL INDEMNIFY SELLER GROUP FROM AND AGAINST ANY AND ALL CLAIMS FOR CONSEQUENTIAL LOSS OF BUYER GROUP REGARDLESS OF CAUSE OR ACTION.

16.6. 除了本合同项下约定的违约金、应向卖方支付的预先确定的终止费，或买方违反其在本合同项下的保密义务、许可权利或限制而产生的责任外，不论本合同有任何相反规定，也不论事由或行为，凡是针对卖方集团的间接损失提起的任何及所有索赔，均由卖方负责，并保障买方集团不受损害；凡是针对买方集团的间接损失提起的任何及所有索赔，均由买方负责，并保障卖方集团不受损害。

16.7. NOTWITHSTANDING ARTICLE 16.3 (a), IN THE EVENT BUYER GROUP PROVIDES PRODUCTS, PARTS OR SERVICES USING SELLER'S PRODUCTS AND/OR PARTS TO A THIRD PARTY OR USES SELLER'S PRODUCTS AND/OR PARTS AT A FACILITY OR SITE NOT OWNED BY BUYER, OR THE SELLER'S SERVICES ARE PERFORMED AT A FACILITY OR SITE NOT OWNED BY BUYER, BUYER SHALL INDEMNIFY SELLER GROUP FOR AND AGAINST ANY CLAIMS MADE IN EXCESS OF THE LIMITATIONS AND EXCLUSIONS SET FORTH IN THE CONTRACT, REGARDLESS OF CAUSE OR ACTION. IN THE EVENT BUYER ASSIGNS OR NOVATES THE CONTRACT, IN WHOLE OR IN PART, BUYER SHALL PROCURE THAT SUCH ASSIGNEE OR NOVATEE SHALL BE BOUND BY THE SAME TERMS OF THIS CONTRACT, AND BUYER HEREBY WAIVES ANY RIGHT TO CLAIM, WHETHER IN TORT (INCLUDING NEGLIGENCE), AT LAW, OR OTHERWISE, DAMAGES OR LIABILITIES OF ANY KIND IN EXCESS OF THE LIMITATIONS AND EXCLUSIONS SET FORTH IN THE CONTRACT.

16.7. 尽管有第 16.3(a)条的规定，若买方集团使用卖方的产品和/或零部件向第三方提供产品、零部件或服务，或在非买方所有的设施或场地使用卖方的产品和/或零部件，或卖方的服务在非买方所有的设施或场地被提供，不论事由或行为，就超出本合同规定的限额和免责额的索赔，买方应赔偿卖方集团。若买方将本合同的全部或部分予以转让或转移，买方应使得该受让人或受让方应受本合同同等的条款和条件约束，且买方在此放弃就超过本合同规定的限额和免责额的任何类型的损害或责任提出索赔的任何权利，无论其是基于侵权（包括过失）、法律或其他。

16.8. Buyer and Seller each covenant and agree to support their mutual indemnity obligations under Article 16 by procuring and maintaining, at the indemnifying party's sole expense, insurance policies meeting the following requirements: (i) Workers Compensation/Employer's Liability as per Applicable Law; (ii) Comprehensive General Liability: Combined Single Limits for Bodily Injury and Property Damage US\$2,500,000.00 (two and a half million) per occurrence and US\$10,000,000.00 (ten million) in the aggregate (or its equivalent in another relevant currency), which may be satisfied through a combination of underlying and excess coverages. The parties agree that, to the extent of the indemnifying party's liability and indemnity obligations under this Contract, the indemnifying party's General Liability policies shall include the indemnified party Group as additional insured, be primary, and receive no contribution from any insurance policies maintained by or on behalf of the indemnified party. Each party, on request, shall provide to the other party insurance certificates evidencing the

forementioned limits and terms of insurance. Buyer and Seller shall each arrange for any of their respective insurance policies hereunder to contain provisions whereby, to the extent of each party's liability and indemnity obligations under this Contract, their insurers waive their rights of subrogation against the other party's Group, as well as the other party's respective insurers.

16.8. 买方和卖方约定并同意，为了支持其对彼此在第 16 条下的赔偿义务，由赔偿方自费购买并维持满足以下要求的保险单：(i) 符合适用法律的劳工赔偿险/雇主责任险；(ii) 综合责任险：可通过基础和超额保险组合，实现人身伤害合并财产损害赔偿责任的单次赔偿限额为 2,500,000.00（贰佰伍拾万）美元（或等额的其他相关货币），累计赔偿限额为 10,000,000.00（壹千万）美元（或等额的其他相关货币）。双方同意，在赔偿方于本合同项下的责任和赔偿义务范围内，赔偿方的综合责任险保险单应将被赔偿方集团作为附加被保险人，被赔偿方集团在赔付时优先受偿，且不从由被赔偿方维持或代表被赔偿方维持的任何保险单中获得分摊。被要求时，各方应向另一方提供证明前述保险限额和条款的保险证明。买方和卖方均应安排在其各自于本合同下的保险单中加入如下条款，即在各方于本合同下的责任和赔偿义务范围内，其承保人放弃针对另一方集团及另一方相应承保人的代位求偿权。

17. **NO NUCLEAR USE** – The Products, Parts, and/or Services are not intended or authorized for use in connection with any nuclear facility or activity, and Buyer warrants that it shall not use, or permit others to use, Products, Parts, and/or Services in connection with or for any such purposes without the advance written consent of Seller. If, in breach of the foregoing, any such use occurs, Seller hereby disclaims any and all liability for any nuclear or other damage, injury, or contamination REGARDLESS OF CAUSE OR ACTION. In addition to any other rights of Seller and to the maximum extent permitted under Applicable Law, Buyer assumes sole responsibility for, and shall Indemnify Seller Group from and against, any and all Claims asserted by or in favor of any person or party resulting from any nuclear or other damage, injury, or contamination REGARDLESS OF CAUSE OR ACTION. Consent of Seller to any use in connection with any nuclear facility or activity, if any, will be conditioned upon additional terms and conditions that Seller determines to be acceptable for protection against nuclear liability.

17. **禁止核使用** – 产品、零部件和/或服务不得被计划进行或被授权进行任何与核设施或核活动相关的使用，且买方保证在未经卖方事先书面同意的情况下，其将不得自行或允许他方进行与核设施或核活动相关或为实现该等目的对产品、零部件和/或服务的使用。如果发生违反前述要求的该等使用，**不论事由或行为**，卖方在此拒绝就核能的或其他的损害、伤害或污染承担任何及全部责任。除卖方的任何其他权利外，以及在适用法律允许的最大范围内，**不论事由或行为**，对因任何核能的或其他的损害、伤害或污染而产生的任何人或任何一方所主张的或对其有利的任何及所有索赔，买方应独立承担全部责任并应就此赔偿卖方集团。卖方就与任何核设施或核活动相关的任何使用而作出的同意（如有），将以卖方认为为防止核责任而可接受的附加条款和条件为前提。

18. **ADDENDA** – If any Products or Parts include executable binary code or Seller provides any Products that are hosted services, software, software as a service or software that is installed on Buyer Group's equipment, the terms of the annexed Software Addendum shall apply. If Seller is providing hosted services or software as a service, the annexed Hosted Services Addendum shall also apply. If Seller provides rental equipment, the terms of the annexed Rental Equipment Addendum shall apply. If there is any conflict between these Terms and Conditions and the terms of any applicable addendum, the terms of the addendum shall prevail unless otherwise agreed in writing.

18. **附录** – 如果任何产品或零部件包含可执行的二进制代码，或者卖方提供的任何产品是托管服务、软件、软件即服务或安装在买方集团设备上的软件，则随附的软件附录的条款应予以适用。如果卖方提供的是托管服务或软件即服务，则随附的托管服务附录也应适用。如果卖方提供的是租赁设备，则随附的租赁设备附录的条款应予以适用。如果这些条款和条件与任何适用的附录的条款之间存在任何冲突，则应以附录的条款为准，除非另有书面约定。

19. **GOVERNING LAW** – The Contract shall be governed by and construed in accordance with the laws of PRC (excluding in any case conflict of law rules). The parties acknowledge and agree that the United Nations Convention on Contracts for the International Sale of Goods and the Uniform Computer Information Transactions Act as enacted by any state, will not apply to the Contract.

19 **准据法** – 本合同应适用中国的法律并根据其进行解释（冲突法规则除外）。各方承认并同意，《联合国国际货物销售合同公约》和美国各州颁

布的《统一计算机信息交易法》不适用于本合同。

20. DISPUTE RESOLUTION – In the event of any dispute arising out of or in connection with the present Contract the parties agree to settle through friendly negotiations. If the dispute has not been settled within sixty (60) days following the first meeting of the friendly negotiation or within such other period as the parties may agree in writing, such dispute shall be finally submitted for arbitration to Beijing Arbitration Commission in accordance with the arbitral rules promulgated by the said Arbitration Commission. The arbitration shall take place in Beijing and the decision of the Arbitration Commission shall be final and binding upon both parties; neither party shall seek recourse to a law court nor other authorities to appeal for revision of the decision. Arbitration fee shall be borne by the losing party. The language to be used in the arbitration shall be English.

20. 争议解决 – 对于因本合同而产生或与本合同相关的任何争议，双方同意通过友好协商解决。若该争议在首次友好协商会议后的六十（60）天内或双方另行书面同意的期间内未得到解决，该争议应被提交至北京仲裁委员会，由该仲裁委员会按照其颁布的仲裁规则进行最终仲裁裁决。仲裁地点在北京且该仲裁委员会的裁决是终局性的且对双方均有约束力。任何一方均不得诉诸法庭或其他机构要求对裁决进行修改。仲裁费用由败诉方承担。仲裁使用的语言应为英文。

21. GENERAL CLAUSES

21. 一般条款

21.1. Except as otherwise expressly provided with regard to the members of each party's Group, none of the terms herein are intended to be enforced by third parties under the United Kingdom Contracts (Rights of Third Parties) Act (1999), where applicable, or any other law. Buyer and Seller shall be entitled to modify, vary, amend, and/or extinguish such rights without the consent of any third parties or member of either party's Group.

21.1. 除非对于各方集团的成员另有明确规定，否则本合同中的任何条款均无意由第三方根据《英国 1999 年合同法（第三方权利）》（如适用）或任何其他法律予以执行。买方和卖方有权在未经任何第三方或任何一方集团成员同意的情况下修改、变更、修订和/或消除该等权利。

21.2. The Contract represents the entire agreement between the parties and no modification, amendment, rescission, waiver, or other change shall be binding on either party unless agreed to in writing by their authorized representatives. Each party agrees that it has not relied on or been induced by any representations of the other party not contained in the Contract.

21.2. 本合同为双方间达成的全部协议，非经双方授权代表书面同意，任何修改、修正、撤销、弃权或其他形式的变更均不得约束任何一方。各方同意其并未依赖于本合同未包含的另一方所作的任何陈述或被该等陈述所诱导。

21.3. The invalidity in whole or in part of any part of the Contract shall not affect the validity of the remainder of the Contract. In the event any provision of the Contract is held invalid or unenforceable, only the invalid or unenforceable part of the provision shall be severed, leaving intact and in full force and effect the remainder of the sentence, clause, and provision to the extent not held invalid or unenforceable.

21.3. 本合同任何部分的全部或局部的无效将不影响本合同其他部分的效力。如果本合同的任何条款被视为无效或不可执行，则只有该条款的无效或不可执行的部分应当被分割，剩余部分的语句、条款与规定在非被视为无效或不可执行的范围内仍应保持完整并具有完全效力。

21.4 These Terms and Conditions are made in both English and Chinese. When both the Buyer and the Seller are legal entities registered in mainland China, both versions shall be equally effective; when either the Buyer or the Seller is a legal entity registered outside mainland China, the English version shall prevail.

21.4 本条款和条件以中英文两种文本书就。当买方及卖方均为在中国大陆注册的法人实体时，两个版本应具有同等效力；当买方或卖方之任一一方为在中国大陆以外的地区注册的法人实体时，应以英文文本为准。

22. U.S. GOVERNMENT CONTRACTS

22. 美国政府合同

22.1. This Article 22 applies only if the Contract is for the direct or indirect sale to any agency of the U.S. government and/or is funded in whole or in part by any agency of the U.S. government. Buyer agrees that all Products, Parts, and Services provided by Seller meet the definition of "commercial-off-the-shelf" ("COTS") or "commercial item" as those terms are defined in Federal Acquisition Regulation

("FAR") 2.101. To the extent the Buy American Act, Trade Agreements Act, or other domestic preference requirements are applicable to the Contract, the country of origin of Products/Parts is unknown unless otherwise specifically stated by Seller in the Contract. Buyer agrees any Services offered by Seller are exempt from the Service Contract Act of 1965 (FAR 52.222-41). The version of any applicable FAR clause listed in this Article 22 shall be the one in effect on the effective date of the Contract.

22.1 第 22 条只适用于向美国政府的任何机构直接或间接销售和/或由美国政府的任何机构全部或部分资助而订立的合同。买方承认由卖方提供的所有产品、零部件及服务符合《联邦采购法规》("FAR") 第 2.101 条中界定的“商用现货”("COTS")或“商业产品”的定义。在《购买美国货法案》、《贸易协定法案》或其他国内优先权要求适用于本合同的范围内，产品/零部件的原产国为未知，除非卖方在本合同中特别说明。买方同意卖方提供的任何服务免受 1965 年《服务合同法案》(《联邦采购法规》第 52.222-41 条)的约束。在第 22 条项下所列的任何可适用的《联邦采购法规》条款的版本应当为于本合同生效日有效的版本。

22.2. If Buyer is an agency of the U.S. government, then as permitted by FAR 12.302, Buyer agrees that all paragraphs of FAR 52.212-4 (except those listed in 12.302(b)) are replaced with these Terms and Conditions. Buyer further agrees the subparagraphs of FAR 52.212-5 apply only to the extent applicable for sale of COTS and/or commercial items and as appropriate for the Contract Price.

22.2 若买方为美国政府机构，在《联邦采购法规》第 12.302 条允许的情况下，买方同意《联邦采购法规》第 52.212-4 条的所有规定（第 12.302(b)条中所列除外）由本合同条款和条件替代。买方进一步同意《联邦采购法规》第 52.212-5 条项下各项仅在商用现货和/或商业产品销售可适用且对合同价款而言恰当的范围内予以适用。

22.3. If Buyer is procuring the Products, Parts, or Services as a contractor, or subcontractor at any tier, on behalf of any agency of the U.S. government, then Buyer agrees that FAR 52.212-5(e) or 52.244-6 (whichever is applicable) applies only to the extent applicable for sale of COTS and/or commercial items and as appropriate for the Contract Price. If the reasonableness of the price cannot be established through adequate price competition, or if cost or pricing data should be required for any other reason, or if a Product, Part, or Service cannot be considered a "commercial item", Seller may terminate the Contract without penalty and be reimbursed for work performed before the effective date of termination.

22.3. 若买方以承包商或任何级别的分包商形式代表美国政府机构采购产品、零部件或服务，则买方同意《联邦采购法规》第 52.212-5(e)条或第 52.244-6 条（无论何者适用）仅在商用现货和/或商业产品销售可适用且对合同价款而言恰当的范围内予以适用。如果不能凭借适当的价格竟确定价格的合理性，或因任何其他原因而被要求提供费用数据或定价数据，或某一产品、零部件或服务不被视为“商业产品”，则卖方可终止本合同而不受任何惩罚，并就在终止生效日前已执行的工作获得补偿。

22.4. Seller reserves the right to reject any order from a Buyer listed on any denied party list.

22.4. 卖方保有拒绝被列入任何“被拒贸易方名单”所列的买方的任何订单的权利。

NOTICE: This Software License and Security Addendum (“Addendum”) is incorporated by reference into and made a part of the Contract between the Buyer and Seller. Any additional or different terms proposed by Buyer are expressly objected to and shall not be binding upon Seller unless expressly accepted in writing by Seller’s authorized representative.

注意：本《软件许可和安全附录》（“本附录”）作为贝克休斯公司《产品、零部件和/或服务销售/许可通用条款和条件》的附录，以引用的方式纳入买方和卖方之间签署的本合同并作为本合同的组成部分。买方提出的任何对下列条款的增加或修改，除非经卖方授权代表以书面形式明确同意，均明确不予接受且对卖方不具有约束力。

1. DEFINITIONS. Any capitalized terms used but not otherwise defined herein shall have the meaning ascribed to them below or in the Terms and Conditions, as the case may be. The following terms are applicable to both the singular and the plural and shall mean:

1.定义 - 本附录中使用但未在本附录中作其他定义的任何术语，应具有以下含义或条款和条件中所载的含义（视情况而定）。以下术语在单数及复数情况下均适用且其含义为：

“Contract” means either the contract agreement signed by both parties or the purchase order signed by Buyer and expressly accepted by Seller in writing, together with the applicable Terms and Conditions, addendums to the Terms and Conditions and any other documents incorporated by reference, Seller’s Proposal, and any agreed scope of work for the sale of Products, Parts, and/or Services, and/or licensing of Software.

“本合同”指针对产品、零部件和/或服务的销售和/或软件的许可，双方签订的合同或买方签署的且经卖方书面明确接受的订单，以及适用的条款和条件、条款和条件的附录、以引用方式纳入的任何其他文件、卖方投标文件和任何约定的工作范围。

“Designated Hardware” means the computer equipment specified in the Contract or such additional equipment as the parties may from time to time designate in writing.

“指定硬件”指本合同所列的计算机设备或双方不时书面指定的额外设备。

“Derivative Works” means: (a) any work based upon one or more pre-existing works, including, but not limited to, a revision, enhancement, modification, translation, abridgement, condensation, expansion, extension or any other form in which such pre-existing works may be published, recast, transformed, or adapted, and that if prepared without the authorization of the owner of the copyright to such pre-existing works, would constitute a copyright infringement, and/or (b) any compilation that incorporates such pre-existing works. For Software, Documentation, and Third-Party Software, Derivative Works also includes any and all corrections, bug fixes, and updates to the (i) Software, (ii) Documentation, (iii) Third-Party Software, and (iv) Derivative Works, but does not include Licensee Developments

“衍生作品”指：(a) 任何基于一个或多个先前存在的作品而创作的作品，包括但不限于对先前存在的作品的修改、优化、修正、翻译、删减、压缩、扩展、延展或其他任何可能使得先前存在的作品被发布、改写、改变或改编的形式，且如果未经该先前存在作品的著作权所有人授权而创作出该作品，会构成著作权侵权，和/或(b)包含先前存在的作品的任何汇编。就软件、文档以及第三方软件而言，衍生作品还包括对(i)软件、(ii)文档、(iii)第三方软件和(iv)衍生作品这四类的任何及全部修正、补丁及更新，但不包括被许可方可开发。

“Documentation” means all product manuals, technical specifications, and user instructions regarding the capabilities, operation, installation, and use of the Products, Part, Services, software and/or third-party software, whether in printed, on-line, or electronic form (except training materials), as may be made available or updated by Seller from time to time.

“文档”是指由卖方不时提供或更新的与产品、零部件、服务、软件和/或第三方软件的性能、操作、安装和使用相关的所有产品手册、技术规格以及使用说明，不论是以印刷形式、在线形式还是电子形式存在（不包括培训材料）。

“Error” means a material failure of the Software to perform substantially in accordance with its Documentation, which failure is demonstrable in the environment for which the Software was designed.

“错误”是指软件未能实质上按照其文档运行的重大故障，该故障在软件的设计应用环境中是可证明的。

“License Term” means the duration of the License (as defined in Article 2.1 of this Addendum) for a particular item of Software, as specified in the applicable purchase order accepted by Licensor in writing, unless otherwise terminated earlier pursuant to this Addendum or the Contract.

“许可期限”指许可方可书面接受的适用采购订单载明的某一特定软件许可（定义见本附录第 2.1 条）的期限，除非根据本附录或本合同另行提前终止。

“Licensee” means the Buyer defined in the Terms and Conditions. The terms “Licensee” and “Buyer” are used interchangeably hereunder.

“被许可方”是指条款和条件中定义的买方。术语“被许可方”和“买方”在下文可互换使用。

“Licensee Developments” means any software code created by Licensee (i) to improve the usability of the Software, Third Party Software or Derivative Works, as may be permitted in the Documentation, or (ii) as a software patch. Licensee Developments are not Derivative Works as defined in the Terms and Conditions.

“被许可方可开发”是指被许可方可(i)（如文档允许）为提高软件、第三方软件或衍生作品的可用性，或(ii) 作为软件补丁，而创建的任何软件代码。被许可方可开发并非条款和条件中定义的衍生作品。

“Licensor” means the Seller defined in the Terms and Conditions. The terms “Licensor” and “Seller” are used interchangeably hereunder.

“许可方”是指条款和条件中定义的卖方。术语“许可方”和“卖方”在下文可互换使用。

“Monitoring Software” means Software designed for the remote, real-time performance, health, failure, tracking, and/or up-time monitoring and management of field equipment and related systems.

“监控软件”是指被设计用于对现场设备及相关系统进行远程、实时性能、健康状况、故障、追踪和/或正常运行时间的监控及管理的软件。

“Open Source Software” means any software that is distributed as “free software”, “open source software”, or under a similar licensing or distribution model, including without limitation the GNU General Public License (GPL), GNU Affero GPL License, GNU Lesser General Public License (LGPL), Mozilla Public License (MPL), BSD licenses, the Artistic License, the Netscape Public License, the Sun Community Source License (SCSL), the Sun Industry Standards Source License (SISSL), and the Apache License.

“开源软件”指以“自由软件”、“开源软件”或类似许可或分发模式分发的任何软件，这些模式包括但不限于 GNU 通用公共许可证（GPL）、GNU Affero 通用公共许可证、GNU 宽通用公共许可证（LGPL）、Mozilla 公共许可证（MPL）、BSD 许可证、艺术许可证、网景公共许可证、Sun 社区源代码许可证（SCSL）、Sun 工业标准许可证（SISSL）和 Apache 许可证。

“Software” means Licensor’s proprietary computer software and software security devices licensed by Licensor under the Contract but excludes any Third-Party Software.

“软件”是指许可方可根据本合同许可的许可方专有的计算机软件和软件安全设备，但不包括任何第三方软件。

“Terms and Conditions” means the Baker Hughes Company General Terms & Conditions for Sale/Licensing of Products, Parts and/or Services, or other terms and conditions mutually agreed to by Licensee and Licensor, to which this Addendum is attached, referenced or incorporated into.

“条款和条件”指本附录所附属的、引用本附录的或包含本附录的贝克休斯公司《产品、零部件和/或服务销售/许可通用条款和条件》或被许可方和许可方一致同意的其他条款和条件。

“Third-Party Software” means any computer software owned or licensed by a third party that Licensor may provide to Licensee under the Contract, which may include but is not limited to Open Source Software.

“第三方软件”指许可方可在本合同项下向被许可方提供的任何由第三方拥有或许可的计算机软件，包括但不限于开源软件。

“Workstation” means any configuration of computer equipment at which a single operator works.

“工作站”是指由一名操作人员操作的计算机设备的任何配置。

2. SOFTWARE LICENSE GRANT

2. 软件许可授予

2.1. Subject to the terms of the Contract, Licensor hereby grants to Licensee a non-transferrable, non-sublicensable, nonexclusive limited license during the License Term for Licensee to use the Software set forth in the applicable purchase order accepted by Licensor in writing and its associated Documentation, including upgraded, modified, or enhanced versions as may be furnished to Licensee by Licensor, and to use any Third-Party Software included therewith or therein, solely for Licensee’s internal business purposes (“License”).

2.1 在遵守本合同条款的前提下，许可方特此授予被许可方在许可期限内一项不可转让、不可分许可的非排他的有限许可，授权被许可方仅为被许可方内部业务目的使用许可方书面接受的适用采购订单及其相关文档中载明的软件（包括许可方可能提供给被许可方的升级、修改或增强版本）及其随附或内置的任何第三方软件（“许可”）。

2.2. Licensee agrees it shall not, and shall not permit or enable any other party to (a) modify or create Derivative Works of the Software, Software Documentation, or Third-Party Software; (b) lease, rent, transfer, distribute, sublicense, timeshare, or allow third parties to access Software, Software Documentation, or Third-Party Software, nor assign any rights hereunder to a third party without Licensor’s prior written agreement; (c) disassemble, decompile, reverse engineer, or otherwise attempt to reconstruct or discover the source code of the Software or Third-Party Software, unless such a right is explicitly granted by any explicit license referred to in Article 2.3 below or as a matter of law, and then only to the extent explicitly permitted; (d) pledge Software or Third-Party Software as collateral or otherwise, or encumber such Software or Third-Party Software with any lien or security interest; (e) access or use the Software or Third-Party Software in a way intended to avoid incurring fees or exceeding usage limits or quotas; or (f) remove, alter, or obscure any product identification, copyright, trademark, or other notice from Software, Documentation, or Third-Party Software. If Licensee believes that it is entitled to reverse engineer Software as a matter of local law, Licensee agrees that it shall first request technical information from Licensor. Licensee shall use any technical information delivered by Licensor only for purposes of ensuring “interoperability” and compatibility and shall treat such technical information as Confidential Information of Licensor. Any reverse engineering or unauthorized modification of Software shall void any warranties or indemnification obligations of Licensor and shall automatically release Licensor from any obligation to provide support services under this or any separate agreement.

2.2 被许可方同意其不会，并且不会允许或使得任何其他方(a) 对软件、软件文档或第三方软件进行修改或创作衍生作品；(b) 出租、租用、转让、分发、分许可、分时使用或允许第三方访问软件、软件文档或第三方软件，及未经许可方事先书面同意将本合同项下任何权利转让给第三方；(c) 反汇编、反编译、反向工程或以其他方式试图重构或发现软件或第三方软件的源代码，除非该等权利经以下第 2.3 条中提到的明示许可被明确授予或依法被明确授予，且仅在明确允许的范围内行使；(d) 将软件或第三方软件作为担保物或以其他方式进行质押，或为该等软件或第三方软件设置留置权或担保权益；(e) 以意图避免发生费用或超出使用限制或配额的方式访问或使用软件或第三方软件；或(f) 移除、更改或隐藏任何产品标识、著作权、商标或其他来自于软件、文档或第三方软件的声明。如果被许可方认为依照当地法律有权对软件进行反向工程，被许可方同意其应首先向许可方请求提供技术信息。被许可方应仅将许可方交付的任何技术信息用于确保“互用性”和兼容性，并将该等技术信息视为许可方的保密信息。对软件的任何反向工程或未经授权的修改均导致许可方的任何保证或赔偿义务无效，且自动解除许可方在本合同或任何另行签订的协议项下提供支持服务的义务。

2.3. Certain software Licensor provides to Licensee may contain Open Source Software or other Third-Party Software. Open Source Software and Third-Party Software may be supplied to Licensee under a separate license agreement, which shall govern Licensee’s use thereof. Licensee shall not modify or combine Software and/or any Open Source Software or Third-Party Software in any manner that could cause, or could be interpreted or asserted to cause, Software or any

modifications thereto to become subject to the terms of any license applicable to Open Source Software or Third-Party Software. All Third-Party Software provided hereunder is bundled with Software and licensed for use only with such Software. If and to the extent there is a conflict between the Contract and the license terms for any Open Source Software, the Open Source Software license terms control as to the software covered by those terms.

2.3 许可方提供给被许可方的某些软件可能包含开源软件或其他第三方软件。开源软件和第三方软件可能根据另行签订的许可协议提供给被许可方，被许可方对开源软件或第三方软件的使用受该等协议的约束。被许可方不应以任何方式修改或合并软件和/或任何开源软件或第三方软件，使得该修改或合并可能导致、可能被解释为或被声称会导致软件或其任何修改受限于适用于开源软件或第三方软件的任何许可条款的约定。本合同项下提供的所有第三方软件均与软件捆绑提供，且仅被许可与该等软件一同使用。如果本合同与任何开源软件的许可条款之间存在冲突，则在此冲突范围内，对于开源软件许可条款所涵盖的软件，以该等许可条款为准。

2.4. The specific types and physical location of monitored equipment, and numbers of licenses granted to Licensee, are designated in the applicable proposal or purchase order document as follows:

2.4 被监控设备的特定类型及物理位置、以及授予给被许可方的许可的数量规定在适用的投标文件或采购订单文件中，如下所示：

- **Seat License.** A license corresponding to an individual Workstation.
席位许可。与单个工作站对应的许可。
- **Site License.** A license corresponding to a designated Site regardless of the number of Workstations therein.
现场许可。与指定现场对应的许可，不论该现场内工作站的数量。
- **Enterprise License.** A license corresponding to an entire Buyer Group organization regardless of the number of Sites or Workstations.
企业许可。与整个买方集团组织对应的许可，不论现场或工作站的数量。
- **Processor License.** A license corresponding to a number of processors in the Designated Hardware regardless of the number of end users.
处理器许可。与指定硬件中包含的若干处理器对应的许可，不论最终用户的数量。

2.5. Licensee may make one copy of Software, Documentation, and Third-Party Software for backup purposes only. Licensee must reproduce and include all proprietary rights and copyright notices on any such backup copies. Except as authorized under this Addendum, no copies of Software, Documentation, or Third-Party Software may be made by Licensee or any third party; provided, however, Licensee may print on-line Documentation for its own internal use, provided the maximum number of copies may not exceed the number of users licensed hereunder.

2.5. 被许可方可仅出于备份目的制作一份软件、文档和第三方软件的副本。被许可方须在该等备份副本中复制并包含所有专有权利和著作权声明。除本附录授权外，被许可方或任何第三方均不得制作软件、文档或第三方软件的副本；但被许可方可为其内部使用打印在线文档，前提是打印出的副本的最大数量不得超过本附录许可的用户数量。

2.6. During the License Term and for three (3) years thereafter, Licensor may upon reasonable notice require that an independent audit of the use of Software and Third-Party Software be conducted during Licensee’s normal business hours. Upon such notice, Licensee shall provide Licensor’s independent auditor Site access and the right to inspect relevant portions of Buyer Group’s computer systems on which Software and Third-Party Software resides. Licensee agrees to pay promptly: (a) all underpaid license fees and (b) if the underpayment is more than 5% of the license fees, all audit costs and expenses.

2.6. 在许可期限以及此后三(3)年内，许可方经合理通知，可要求在被许可方正常营业时间内对软件和第三方软件的使用进行独立审计。收到该通知后，被许可方应向许可方的独立审计员提供进入现场的权限以及查看安装了软件和第三方软件的买方集团计算机系统之相关部分的权利。被许可方同意立即支付：(a) 所有未支付的许可费，以及(b) 所有审计成本及费用，如果未支付费用超过审计前已支付许可费的 5%。

2.7. IF LICENSEE TRANSFERS POSSESSION OF ANY COPY OF THE SOFTWARE, DOCUMENTATION, OR THIRD-PARTY SOFTWARE TO ANOTHER PARTY WITHOUT WRITTEN CONSENT OF LICENSOR, THIS LICENSE IS AUTOMATICALLY TERMINATED. Any attempt otherwise to sublicense, assign, or transfer any of the rights, duties, or obligations under this Addendum is void.

2.7. 如果被许可方未经许可方书面同意, 将软件、文档或第三方软件的任何副本转移给其他方持有, 本许可自动终止。任何以其他方式分许可、转让或让与本附录项下权利、责任或义务的尝试均为无效。

2.8. This Contract does not obligate Licensor to provide maintenance and support for any Software or Third-Party Software licensed hereunder. Support services are available, as applicable, under separate agreement or as set forth in an applicable purchase order accepted by Licensor in writing. If Software is an upgrade of a previous version, Licensee may use the upgraded Software only in accordance with the Contract.

2.8. 本合同不要求许可方就根据本合同许可的任何软件或第三方软件提供维护和支持。根据另行签订的协议或许可方书面接受的适用采购订单中的约定, 许可方可提供支持服务(如适用)。如果软件是先前版本的升级版, 则被许可方只能根据本合同使用升级后的软件。

3. DELIVERY AND TRANSFER OF TITLE

3. 交付和所有权转移

3.1. With regard to Software, Software Documentation, and Third-Party Software, unless otherwise specified in the applicable purchase order: (a) such items will be made available online and/or for electronic download by Licensee; and (b) Licensor shall be deemed to have delivered such items when Licensor first makes them available for Licensee to access or download. Delivery shall not be determined by the date when Licensor makes available any upgraded, modified, or enhanced versions of the Software, Documentation, or Third-Party Software as may be furnished to Licensee. If the Contract specifies that any Software, Documentation, or Third-Party Software is to be delivered to Licensee on physical media, then delivery of physical media will be made CPT Licensee's facility (Incoterms 2020). Delivery of Software that is embedded in or included with Products shall be according to the Delivery terms for the applicable Product.

3.1 就软件、软件文档和第三方软件而言, 除非适用采购订单另有规定: (a) 该软件、软件文档和第三方软件应在线提供和/或可供被许可方以电子形式下载; 及(b) 许可方首次向被许可方提供该软件、文档和第三方软件供被许可方访问或下载时应视为许可方已交付上述各项。交付不得以许可方可能向被许可方提供软件、文档或第三方软件的任何升级、修正或加强版本之日确定。若本合同规定以物理媒介向被许可方交付任何软件、文档或第三方软件, 则应以 CPT 被许可方设施(术语参照《国际商会 2020 国际贸易术语解释通则》)的方式交付该物理媒介。产品中嵌入或随附的软件的交付应按照相应产品的交付条款进行。

3.2. Software, Documentation, and Third-Party Software shall be considered accepted by Licensee upon Delivery.

3.2 软件、文档和第三方软件在交付时应视为被被许可方接受。

3.3. Licensor or its relevant Group member or third-party licensor shall retain title to any Software, Documentation, and Third-Party Software furnished by Seller Group to Buyer Group. No title to the Software, Documentation, or Third-Party Software, including any Software embedded in or included with Products, is transferred to Buyer Group.

3.3. 许可方或其相关集团成员或第三方许可方应保留对卖方集团向买方集团提供的任何软件、文档和第三方软件的所有权。软件、文档和第三方软件(包括任何嵌入产品或包含在产品内的软件)的所有权均不转移至买方集团。

4. OWNERSHIP

4.1. All Software, Documentation, and Third-Party Software are licensed and not sold. Licensee agrees that Licensor or its suppliers own all proprietary rights, including, but not limited to any patent, copyright, trade secret, trademark, and other proprietary rights, in and to Software, Documentation, and Third-Party Software, including any Derivative Works thereof regardless of the source of development, including but not limited to cases where Licensee engages a third party to perform such development and any corrections, bug fixes, and updates to such Software, Documentation, Third-Party Software, or Derivative Works.

4.1. 所有软件、文档和第三方软件均系许可而非出售。被许可方同意许可方或其供应商拥有软件、文档和第三方软件(包括前述各项的任何衍生作品)上及其内的所有专有权利, 包括但不限于任何专利、著作权、商业秘密、商标权和其他专有权利。就该等衍生作品而言, 不论其开发来源如何, 包括但不限于被许可方聘请第三方进行的该等开发以及对该软件、文档、第三方软件或衍生作品所做的任何修正、补丁及更新的情况。

4.2. To the extent that any Derivative Works of the Software or Third-Party Software are developed, Licensee hereby (a) agrees that the intellectual property

rights to such Derivative Works are automatically vested in Licensor (or its Affiliates, in Licensor's sole discretion) or in the owner of Third-Party Software, as applicable, and may be used by Licensor (or the owner of any Third-Party Software Derivative Works) without limitation and without any obligation to Licensee on behalf of Licensor and/or such other relevant owner; (b) irrevocably transfers and assigns, and agrees to transfer and assign, to Licensor all intellectual property rights, moral rights, title, and interest throughout the world in and to any such Derivative Works, including, but not limited to, all rights in and to any inventions and designs embodied in such Derivative Works or its associated technology; (c) agrees and forever waives any right to assert any claim contrary to (a) and (b) in this Article 4.2; and (d) agrees to take all steps necessary to fulfil the requirements as set forth in this Article 4.2 for any such Derivative Works whether developed by Licensee or by any third party under Licensee's direction. If by operation of law such rights are not automatically transferred and assigned as provided above, Licensee shall timely execute and deliver such instruments and take such other action as may be requested by Licensor to perfect and protect Licensor's (or Third-Party Software owner's) rights in any Derivative Works and to carry out the assignments effected by this Article 4 at no cost to Licensor.

4.2. 在基于软件或第三方软件开发而形成的任何衍生作品的范围内, 被许可方特此(a) 同意该等衍生作品的知识产权应自动归属于许可方(或其关联方, 由许可方自行决定)或归属于第三方软件的所有人(若适用), 且可由许可方(或任何第三方软件衍生作品的所有人)代表许可方和/或其他相关所有人使用, 不受任何限制且无需向被许可方承担任何义务; (b) 向许可方不可撤销地让与和转让、并同意向许可方让与和转让该等衍生作品上及其内的在全球范围内的全部知识产权、精神权利(人身权)、所有权和利益, 包括但不限于该等衍生作品或其相关技术所内嵌的任何发明和设计上及其内的全部权利; (c) 同意永久放弃提出与本第 4.2 条的(a)和(b)项约定相反的任何主张的权利; 并且(d) 同意就任何该等衍生作品采取所有的必要措施以满足本第 4.2 条约定的要求, 无论该等衍生作品是由被许可方开发或由任何第三方在被许可方的指示下所开发。如果依法规定, 上述权利并未如上述约定自动让与和转让, 被许可方应及时签署并向许可方交付该等文件, 并采取许可方可能要求的其他行为, 以使许可方(或第三方软件所有人)就任何衍生作品所享有的权利合法有效并得到保护, 以及进行本第 4 条赋予效力的转让, 许可方无需就此支付任何费用。

4.3. Notwithstanding the foregoing, Licensor grants Licensee a "right to use" license to any Derivative Works created by Licensee or a third party under Licensee's direction, but solely for Licensee's internal business purposes only under the same terms and conditions that apply to Software, Documentation, or Third-Party Software under Article 2 herein.

4.3. 尽管有上述规定, 对由被许可方或由第三方在被许可方的指示下创作的任何衍生作品, 许可方授予被许可方“使用权”许可, 但该许可仅可为被许可方内部业务之目的, 且应遵守与本附录第 2 条对软件、文档或第三方软件之约定相同的条款和条件。

4.4. Licensee may voluntarily, from time to time, provide suggestions, techniques, know-how, comments, feedback or other input to Licensor with respect to the Software (collectively, "Feedback"). Licensor will be free to use, disclose, reproduce, license or otherwise distribute and exploit all Feedback as it sees fit, without obligation or restriction based on intellectual property rights, confidentiality or otherwise. Licensee will not give any Feedback that is subject to license terms or restrictions that purport to require any Software, Documentation, service or product incorporating or derived from such Feedback, or any Licensor intellectual property, to be licensed to or otherwise shared with Licensee or any third party. For the avoidance of doubt, this paragraph does not grant to Licensor any intellectual property rights in Licensee's preexisting technology.

4.4. 被许可方可不时就软件自愿向许可方提供建议、技术、技术诀窍、意见、反馈或其他信息(合称“反馈”)。许可方可按其认为适当的方式自由地使用、披露、复制、许可或以其他方式分发和利用所有反馈, 而无需承担基于知识产权、保密或其他方面的义务或限制。被许可方不会提供受限于如下许可条款或限制的反馈, 即声称要求向被许可方或任何第三方许可或者以其他方式与被许可方或任何第三方共享 (i) 包含该等反馈或由该等反馈衍生的任何软件、文档、服务或产品, 或 (ii) 任何许可方知识产权。为免疑义, 本条约定并不向许可方授予被许可方先前已有技术的任何知识产权。

4.5. For the purposes of this Article 4, the term "Licensor" shall mean Licensor, its Affiliates, and their successors or assigns.

4.5. 就本第 4 条而言, “许可方”一词指许可方、其关联方及其继受人或受让人。

5. LIMITED SOFTWARE WARRANTIES; DISCLAIMERS

5. 软件有限质保；免责声明

5.1. Licensor warrants, for Licensee's benefit alone, that for a period of 90 days from the Delivery Date of the original Software ("Software Warranty Period"), the Software will perform substantially in accordance with its Documentation. If, during the Software Warranty Period, an Error occurs, Licensor will use commercially reasonable efforts to correct such Error, provided Licensee furnishes Licensor with the following: (a) written notice of the Error during the Software Warranty Period, including a description of the failure to perform in accordance with the Documentation and a specific description of the operating conditions (including the specific software/hardware configuration) under which the Error occurred, and (b) to the extent feasible, a representative sample of inputs for repeating and analyzing the Error. If Licensor is unable, after commercially reasonable efforts, to correct the Error during the Software Warranty Period, Licensee's sole remedy shall be termination of the License and a refund of a pro-rated portion of the license fees allocable to the specific nonconforming Software that have been paid by Licensee to Licensor under the Contract; provided, however, that such termination right must be exercised by Licensee, if at all, within 30 days after expiration of the Software Warranty Period or shall thereafter be deemed to have been waived by Licensee. Notwithstanding anything to the contrary herein, under no circumstance will any warranty granted herein cover and Licensor shall not be responsible under the Contract for: (a) any Error that results from Licensee's breach of the Contract; (b) any Error that results from any unauthorized use, alteration, revision, change, enhancement, or modification of any nature of the Software, or from any design defect in any configuration of the Software performed by any party other than Licensor; (c) any Error that results from errors, defects, or modifications in any hardware, software, system, or data used by Licensee, in each case that was not provided by Licensor; (d) any Error that results from use of the Software in combination with any hardware, software, or system not provided or authorized by Licensor; (e) any Error that results from cyber-attacks, viruses, worms, malware, Trojan horses, or other harmful surreptitious computer code, files, scripts, agents, or programs; or (f) Errors or vulnerabilities that would have been obviated had Licensee implemented a recommended update or upgrade made available at no additional charge from Licensor.

5.1. 仅为被许可方利益，许可方保证，原始软件交付日期后 90 日内（“软件质保期”），软件将实质上按照其文档运行。若在软件质保期内出现错误，许可方应采取商业上合理的措施纠正该错误，但前提是获许可方向许可方提供：(a) 软件质保期内该错误的书面通知，包括对未能依照文档运行的故障的描述以及对该错误发生时的运行条件（包括具体软件/硬件配置）的具体描述，和 (b) 在可行范围内，一份用以重复并分析错误的具有代表性的输入样本。如果许可方在采用商业上合理的努力后仍不能在软件质保期内纠正错误，则被许可方的唯一救济为终止该许可，以及获得按比例退还的已经由被许可方根据本合同向许可方支付的归属于该特定不合格软件的许可费，但前提是获许可方必须在软件质保期期满后 30 日内行使该终止权（若适用），否则应视为被许可方放弃该终止权。即使本合同存在任何相反约定，任何情况下本合同所载的质保均不涵盖以下各项，且许可方在本合同项下不就以下各项承担责任：(a) 因被许可方违反本合同造成的任何错误；(b) 因未经授权对软件进行的任何性质的使用、改动、修改、变更、增强或修正造成的任何错误，或由许可方以外的任何一方执行的软件的任何配置中的任何设计缺陷造成的错误；(c) 因被许可方使用的非经许可方提供的硬件、软件（此处不适用本附录对“软件”的定义）、系统或数据中存在错误（此处不适用本附录对“错误”的定义）、缺陷或修改而造成的任何错误；(d) 因软件与非经许可方提供或授权的硬件、软件（此处不适用本附录对“软件”的定义）或系统结合使用造成的任何错误；(e) 因网络攻击、病毒、蠕虫、恶意软件、木马或其他有害的隐秘计算机代码、文件、脚本、代理或程序造成的任何错误；或(f) 如果被许可方实施许可方未额外收费而提供的推荐更新或升级便可避免的错误或漏洞。

5.2. This Article 5 provides the sole and exclusive remedies for all Claims based on or relating to any failure of, or any defect or non-conformity in, Software and Documentation, whether the Error, failure, defect, or non-conformity arises before, during, or after the applicable Software Warranty Period and REGARDLESS OF CAUSE OR ACTION (INCLUDING NEGLIGENCE). THE WARRANTIES PROVIDED IN THIS ARTICLE 5 ARE EXCLUSIVE AND ARE IN LIEU OF ALL OTHER WARRANTIES, CONDITIONS, AND GUARANTEES PERTAINING TO THE SOFTWARE. LICENSOR MAKES NO, AND HEREBY DISCLAIMS ANY, IMPLIED OR STATUTORY WARRANTY, OR WARRANTY OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, OR NON-INFRINGEMENT, OR TO THE ACCURACY, CURRENCY, COMPLETENESS, RELIABILITY, OR USEFULNESS OF ANY OUTPUT OF THE SOFTWARE. LICENSOR DOES NOT MAKE ANY WARRANTY THAT THE SOFTWARE WILL MEET LICENSEE'S REQUIREMENTS, OR THAT THE SOFTWARE WILL BE

UNINTERRUPTED, TIMELY, SECURE, OR ERROR FREE, OR THAT DEFECTS, IF ANY, WILL BE CORRECTED. NOR DOES LICENSOR MAKE ANY WARRANTY AS TO THE RESULTS THAT MAY BE OBTAINED FROM USE OF THE SOFTWARE. LICENSOR ASSUMES NO RESPONSIBILITY FOR ANY DAMAGES SUFFERED BY LICENSEE, INCLUDING, BUT NOT LIMITED TO, LOSS OF DATA FROM DELAYS, NONDELIVERIES OF CONTENT OR EMAIL, ERRORS, SYSTEM DOWNTIME, MISDELIVERIES OF CONTENT OR EMAIL, NETWORK OR SYSTEM OUTAGES, FILE CORRUPTION, OR SERVICE INTERRUPTIONS CAUSED BY THE NEGLIGENCE OF LICENSOR, ITS AFFILIATES, ITS LICENSORS, OR AN END USER'S OWN ERRORS AND/OR OMISSIONS.

5.2. 本第 5 条是就因软件和文档本身的任何故障或其中的任何缺陷或不合格所引起或与之相关的所有索赔的唯一和排他救济，不论错误、故障、缺陷或不合格发生在适用软件质保期之前、期间或之后，也不论事由或行为（包括过失）。本第 5 条规定的质保具有排他性，替代其他所有与软件相关的保证、条件和担保。许可方未做出且特此否认任何默示或法定保证，并未就且特此声明不就适销性、适用于特殊用途、所有权、不侵权、或软件输出结果的准确性、及时性、完整性、可靠性或可用性作出任何保证。许可方未保证：软件将满足被许可方的要求，软件将不被中断、及时、安全或无错误，以及缺陷（若有）将被纠正。许可方亦未就使用软件可能获得的结果作出任何保证。许可方不就被许可方因许可方、许可方关联方、许可方的许可方的过失、或最终用户自身错误和/或疏忽而遭受的任何损害承担任何责任，包括但不限于数据丢失（因延迟造成）、内容或电子邮件的无法送达、错误、系统停机时间、内容或电子邮件的错误送达、网络或系统中断、文件损坏或服务中断。

5.3. Additional Warranty Disclaimer for Monitoring Software. While the Monitoring Software provides advisory information regarding equipment condition, it is virtually impossible to guarantee that each and every fault condition can be foreseen or detected. THEREFORE, LICENSOR EXPRESSLY DISCLAIMS ANY WARRANTY THAT THE MONITORING SOFTWARE WILL DETECT ANY PARTICULAR FAILURE OR PROVIDE ANY PARTICULAR AMOUNT OF ADVANCE WARNING OF AN IMPENDING FAILURE OR CONDITION OF THE MONITORED EQUIPMENT.

5.3. 有关监控软件的额外质保免责声明。尽管监控软件提供与设备状况有关的咨询性信息，但基本上不可能保证每一项故障情形均能够被预见或被发现。因此，许可方明确其不就如下事项做出任何保证，即监控软件将会检测出任何特定的故障，或监控软件就被监控设备即将发生的故障或状况提供任何特定数量的预警。

5.4. Additional Warranty Disclaimer with Respect to Cyber Security. PRODUCTS, PARTS, AND SERVICES ARE PROVIDED "AS IS AND WITH ALL FAULTS" WITH RESPECT TO CYBER SECURITY, AND WITHOUT ANY REPRESENTATIONS, WARRANTIES, CONDITIONS, OR GUARANTEES OF ANY NATURE OR KIND WHATSOEVER, INCLUDING ANY REPRESENTATIONS, WARRANTIES, CONDITIONS, OR GUARANTEES OF OR RELATING TO DURABILITY, FITNESS FOR A PARTICULAR PURPOSE, MERCHANTABILITY, PERFORMANCE, QUALITY, RESULTS, SUITABILITY, TIMELINESS; ALL OF WHICH ARE HEREBY DISCLAIMED TO THE FULLEST EXTENT PERMITTED BY APPLICABLE LAW. LICENSEE IS SOLELY RESPONSIBLE AND LIABLE FOR THE SELECTION AND USE OF PRODUCTS, PARTS AND SERVICES TO ACHIEVE LICENSEE'S DESIRED RESULTS. REMEDIATION OF VULNERABILITIES SHALL NOT OBLIGATE LICENSOR TO PROVIDE LICENSEE ANY UPDATES OR UPGRADES, BUT LICENSEE MAY PURCHASE SUCH ENHANCEMENTS.

5.4. 有关网络安全的额外质保免责声明。就网络安全而言，产品、零部件和服务均“依原样且不保证无瑕疵”的方式提供，且特此声明在适用法律允许的最大范围内未就网络安全作出任何性质或类型的陈述、保证、条件或担保，包括但不限于就耐用性、适用于特殊用途、适销性、性能、质量、结果、适用性或及时性作出的任何陈述、保证、条件或担保。被许可方独自负责选择和使用产品、零部件和服务来实现被许可方的预期结果并对此独自承担责任。对漏洞的修复并不要求许可方向被许可方提供任何更新或升级，但被许可方可购买该等更新或升级。

5.5. Any remedial steps taken by Licensor hereunder shall not extend or renew the applicable Software Warranty Period.

5.5. 许可方在本合同项下采取的任何救济措施均不会使适用的软件质保期延长或重新起算。

5.6. Except as expressly authorized by Licensor in writing, and subject to the following in this Article 5.6, all Third-Party Software shall carry only the warranties (if any) provided by the owners thereof and Licensor gives no warranties for such Third-Party Software. Except as expressly authorized by Licensor in writing, any

Open Source Software is distributed on an "AS IS" BASIS, WITHOUT WARRANTIES OR CONDITIONS OF ANY KIND, EITHER EXPRESS OR IMPLIED.

5.6. 除非经许可方书面明确授权，且受限于本第 5.6 条的如下约定，所有第三方软件应仅适用其所有方提供的质保（如有），且许可方不对该第三方软件作出任何保证。除非经许可方书面明确授权，任何开源软件均在“**依原样**”的基础上分发，无任何形式的保证或条件，不论明示或默示。

5.7. Licensee acknowledges that Licensor may, but is not obligated to, offer upgraded or optional Software that provides additional functionality and security, which may be subject to additional fees in Licensor's discretion.

5.7. 被许可方确认，许可方可以但无义务提供可增加功能和增强安全性的升级或可选软件，并可自行决定就此收取额外费用。

5.8. Except as expressly provided in Article 5.1 above or as otherwise expressly provided in the Contract, all amounts payable in connection herewith are non-refundable.

5.8. 除非上述第 5.1 条明确约定或本合同另行明确约定，与本合同有关的所有应付款项均不予退还。

6. CONFIDENTIALITY; EQUITABLE RELIEF

6. 保密；衡平救济

6.1. The Software, Documentation and Third Party Software, and all information concerning or embedded in the Software (including but not limited to source code, object code, and training materials), Documentation, and Third-Party Software is confidential and the property of Licensor (or its suppliers) and shall be considered Licensor's (or its suppliers') Confidential Information, whether or not the information is marked as such. In granting cyber and/or unescorted physical access to Products and/or Parts, Seller may provide log-on codes, log-on identifications, passwords, and/or other individualized explicit access permissions (collectively "Access Codes"). Access Codes are subject to the confidentiality provisions of the Contract and shall not be disclosed or shared with any other person other than authorized users.

6.1. 软件、文档和第三方软件，以及与前述各项有关或嵌入前述各项的全部信息（包括但不限于源代码、目标代码和培训材料）均为保密信息，且均为许可方（或其供应商）的财产，且该等信息应被视为许可方（或其供应商）的保密信息，不论该等信息是否被如此标注。授予产品和/或零部件网络和/或无人陪同的物理访问权限时，卖方可提供登录代码、登录 ID、密码和/或其他个性化的显式访问许可（合称“访问权限代码”）。访问权限代码受限于本合同的保密条款，不得向授权用户以外的任何其他人士披露或与之共享。

6.2. Licensee shall take all reasonable steps to safeguard the Software, Documentation and Third-Party Software so as to ensure that no unauthorized person shall have access to it, and that no persons authorized to have access shall make any unauthorized copy. Licensee shall promptly report to Licensor any unauthorized disclosure or any unauthorized use of any Software, Documentation or Third-Party Software of which it becomes aware and shall take such further steps as may reasonably be requested by Licensor to prevent unauthorized use.

6.2. 被许可方应采取所有合理措施保障软件、文档及第三方软件，以确保未被授权人员无权访问该等软件、文档及第三方软件，并且被授予访问权限的人员不得进行任何未经授权的复制。被许可方应立即将其知悉的对任何软件、文档或第三方软件的任何未经授权的披露或使用报告给许可方，并且应采取许可方可能合理要求的进一步措施以防止该等未授权使用。

6.3. Licensee acknowledges: (a) any use of Software, Documentation, or Third-Party Software in a manner inconsistent with the Contract or (b) any other misuse of Confidential Information of Licensor (or its suppliers), will cause immediate irreparable harm to Licensor (or its suppliers) for which there is no adequate remedy at law. Licensee agrees that Licensor (or its suppliers) shall be entitled to immediate and permanent injunctive relief from a court of competent jurisdiction in the event of any such misuse or threatened misuse by Licensee. The parties agree and stipulate that Licensor shall be entitled to such injunctive relief without posting of a bond or other security; provided, however, that if the posting of a bond is a prerequisite to obtaining injunctive relief, then a bond in an amount equivalent to USD \$1,000 shall be sufficient. Nothing contained herein shall limit Licensor's right to any remedies at law, including the recovery of damages from Licensee for breach of the Contract or Addendum.

6.3. 被许可方确认：(a) 以不符合本合同规定的方式对软件、文档或第三方软件的任何使用，或 (b) 对许可方（或其供应商）的保密信息的任何其他不当使用，将给许可方（或其供应商）造成直接的、无法弥补的损害，且在法

律上对此损害并无足够救济。被许可方同意，若被许可方进行上述不当使用或威胁进行上述不当使用，则许可方（或其供应商）有权自有管辖权的法院获得立即且永久的禁令救济。双方同意并约定，许可方有权享有该等禁令救济，无需出具保证金或其他担保，但如果提供保证金是获得禁令救济的前提条件，则数额等同于 1,000 美元的保证金应为足够。本合同约定的任何条款均不限制许可方享有任何法定救济的权利，包括因被许可方违反本合同或本附录而向被许可方寻求损害赔偿的权利。

7. TERM AND TERMINATION – The License provided under this Addendum is effective until terminated or expiration of the License Term, whichever occurs first. Licensor may terminate the Contract and/or Addendum immediately if Licensee fails to comply with any of the terms and conditions herein or in the Contract. The License for any Software or Third-Party Software provided with leased equipment shall terminate concurrently with termination of the lease, unless earlier terminated hereunder. Immediately upon termination, Licensee shall (a) cease using Software, Documentation, and Third-Party Software and (b) certify to Licensor within one (1) month of the termination that Licensee has destroyed or returned to Licensor the Software, Documentation, and Third-Party Software, and all copies thereof. Termination will not relieve Licensee of the obligation to pay any fees and other charges accrued or payable to Licensor prior to the effective date of termination.

7. 期限和终止 – 本附录项下提供的许可在许可期限终止或到期（以较早者为准）前均有效。若被许可方未遵守本附录或本合同的任何条款或条件，许可方可立即终止本合同和/或本附录。出租的设备随附提供的任何软件或第三方软件的许可应当与租约同时终止，除非该许可可根据本合同被提前终止。终止后，被许可方应立即 (a) 停止使用软件、文档和第三方软件，及 (b) 在终止后一 (1) 个月内向许可方证明被许可方已销毁或已向许可方返还软件、文档和第三方软件以及前述各项的全部副本。终止不免除被许可方的如下义务，即向许可方支付终止生效日之前许可方应收的或应付给许可方的任何费用和其他收费。

8. CYBER SECURITY

8. 网络安全

8.1. This Article 8 shall apply if (a) any Products supplied under the Contract contain Software and/or are designed to be operated in a networked environment, and/or (b) any Services (including Hosted Services) supplied under the Contract include a software or networked component. In the event of any inconsistency or conflict between this Article 8 and any other provision of the Contract or Addendum with respect to a subject covered by this Article 8, the provision requiring the more stringent requirement shall prevail.

8.1. 如果 (a) 本合同项下提供的任何产品包含软件和/或被设计在网络环境中运行的产品，和/或 (b) 任何本合同项下提供的服务（包括托管服务）包含软件或网络组件，则本第 8 条适用。如果本第 8 条与本合同或本附录的其他条款就本第 8 条涉及的某一事项存在任何不一致或冲突，则以要求更严格的条款为准。

8.2. LICENSEE ACKNOWLEDGES AND AGREES THAT: (a) CYBER SECURITY IS A DYNAMIC AND CHANGING AREA; AND (b) PRODUCTS, PARTS AND SERVICES, WHEN CONFIGURED AND USED IN ACCORDANCE WITH APPLICABLE DOCUMENTATION, ARE DESIGNED TO DETECT AND PREVENT ONLY CERTAIN VULNERABILITIES AND UNAUTHORIZED INTRUSIONS BASED UPON A FINITE SET OF TEST CASES, AND DO NOT PROVIDE COMPLETE OR COMPREHENSIVE PROTECTION AGAINST ALL POSSIBLE SECURITY VULNERABILITIES OR UNAUTHORIZED INTRUSIONS.

8.2. 被许可方确认并同意：(a) 网络安全为动态且不断变化的领域；及 (b) 产品、零部件和服务根据适用文档配置和使用时，仅可根据有限的测试案例发现并防止某些漏洞和未经授权的入侵，不就所有可能的安全漏洞或未经授权的入侵提供完整或全面的保护。

8.3. Without limiting any of the obligations under Articles 8.5 and 8.6 below, Licensee shall and shall cause the rest of the Buyer Group (including the Site owner, if not part of the Buyer Group) to: safeguard the Products and Parts so as to ensure that no unauthorized person shall have access to them; and ensure that any Buyer Group employees or agents who may come in contact with the Products or Parts is made aware of the obligations described herein and abide by them. Seller Group shall have a right to access the Products or Parts at the Site at all reasonable times to verify such requirements.

8.3. 在不限制下述第 8.5 条和第 8.6 条约定的任何义务的前提下，被许可方自身应且应使得买方集团的其他成员（包括现场所有方，如果该所有方不是买方集团的一部分）：保护产品和零部件，以确保未经授权的人员无法访问该产品和零部件；并确保任何可能与产品或零部件接触的任何买方集

团员工或代理知悉本附录所述的义务并遵守该等义务。卖方集团有权在所有合理时间访问现场的产品或零部件，以核实上述要求的遵守情况。

8.4. The Products and/or Parts may be partially or wholly configured by Licensor at the time of Delivery to minimize known cyber security risk as of the effective date of the Contract. To the extent that Licensee or its Group alters the hardware, Software, connections, or configuration of the Products and/or Parts in a way not recommended by Seller Group, it does so at its own risk. In the event that Buyer Group acts in violation of this Article 8, or inconsistently with the recommendations of Seller Group, Seller Group shall not be liable, whether in contract, warranty, tort (including negligence), strict liability, or otherwise, for any damages or costs incurred by Buyer Group; and Licensee shall Indemnify Seller Group from any and all Claims, including without limitation costs related to credit monitoring, arising out of or related to any occurrence that may arise out of a violation of this Article 8.

8.4. 许可方在交付时可以部分或者全部地配置产品和/或零部件，以最大程度减少截至合同生效日已知的网络安全风险。在被许可方或其集团以卖方集团所未推荐的方式更改产品和/或零部件的硬件、软件、连接或配置的范围，被许可方或其集团自负风险。如果买方集团违反本第8条的规定，或与卖方集团的建议不一致，卖方集团不对买方集团产生的任何损害或费用承担责任，无论因合同、保证、侵权（包括过失）、严格责任或其他原因引起；且被许可方应就违反本第8条引起的或与之相关的任何和全部索赔，包括但不限于信用监控费用，对卖方集团进行赔偿，并使其免受损害。

8.5. Licensee is responsible for protecting Buyer Group's managed infrastructure, including computer systems and equipment used in interactions with Seller Group, with such tools as anti-virus software, firewall, and up to date operation systems. Licensee is responsible for the operation, control, and maintenance of any monitored equipment and ensuring that Buyer Group's computer systems and monitored equipment meet the current technical requirements as may be specified by Licensor for the Products, Parts, and Services. Licensee shall, and shall procure that Buyer Group shall, comply with Seller Group's secure deployment guidelines applicable to the Products, Parts, and/or Services. Licensee shall procure that neither Buyer Group nor its users will take any action to circumvent any security feature or attempt to exceed authorized access to the Products, Parts, or Services or its related systems or networks; interfere with or disrupt the integrity or performance of the Products or Services or the data contained therein; or send or store material containing software viruses, worms, Trojan horses or other harmful computer code, files, scripts, agents or programs. If Buyer Group becomes aware of any violation of the Contract by a user, Licensee will procure that Buyer Group will immediately terminate such user's access to the Products and/or Services and notify Licensor. Licensee shall, and shall procure that Buyer Group shall, report to Baker Hughes any unauthorized accesses to and/or disclosure of Licensor information, and any known or reasonably suspected breaches of the Licensor's Software, systems, and/or Services ("Licensor Security Incident") by calling the following numbers:

- +1 281 209 7658 (Western Hemisphere)
- +60 2786 7658 (Eastern Hemisphere)

Notifications shall be made within seventy-two (72) hours of Buyer Group's knowledge of such Licensor Security Incident. Licensee shall, and shall procure that Buyer Group will, promptly conduct a forensic investigation of such Licensor Security Incident and provide a summary of the Licensor Security Incident and explanation of its response as soon as reasonably practicable.

8.5. 被许可方应负责通过防病毒软件、防火墙、最新操作系统等工具保护买方集团管理的基础架构，包括与卖方集团进行互动所使用的计算机系统和设备。被许可方负责任何被监控设备的运行、控制和维护，并负责确保买方集团的计算机系统和被监控设备符合许可方可能指明的当前对产品、零部件和服务的技术要求。被许可方应，并应使得买方集团遵守卖方集团适用于产品、零部件和/或服务的安全部署指南。被许可方应确保买方集团及其用户均不会采取任何行动以避开任何安全功能或试图超出对产品、零部件或服务或其相关系统或网络的访问权限；不会干扰或破坏产品或服务或其包含的数据的完整性或性能；以及不会发送、存储包含软件病毒、蠕虫、木马或其他有害计算机的代码、文件、脚本、代理或程序的资料。如果买方集团知悉用户对本合同的任何违反，被许可方应使得买方集团立即终止该用户对产品或/或服务的访问权限，并通知许可方。被许可方应，且应使得买方集团通过拨打以下电话号码，向贝克休斯报告任何未经授权对许可方信息的访问和/或披露，以及任何已知或合理怀疑的对许可方软件、系统和/或服务的违反（“许可方安全事件”）。

- +1 281 209 7658（西半球）
- +60 2786 7658（东半球）

通知应在买方集团知悉该等许可方安全事件后七十二（72）小时内作出。被许可方应，并应使得买方集团立即对许可方安全事件进行法医调查，并在合理可行的情况下尽快提供许可方安全事件的概要及其采取的事件应对的说明。

8.6. Buyer Group's credentials (which may include username, passwords, tokens, certificates, Access Codes, keys, and pins) issued by Seller or selected by Buyer Group for accessing the Products or Services are for Buyer Group's internal use only and Buyer Group shall not sell, transfer, disclose, or sublicense them to any other entity or person, except that Buyer Group may disclose Buyer Group's credentials to Buyer Group's agents and subcontractors performing work on Buyer Group's behalf. Licensee is responsible for any use of Buyer Group's credentials and for notifying Licensor immediately of any breach of security related to Buyer Group's credentials. Buyer Group shall be responsible for the actions of any user or any other person or entity in relation to the Contract, Buyer Group's information, or the Products or Services to the extent that any such action was permitted, assisted, or facilitated by Buyer Group.

8.6. 为访问产品或服务目的，由卖方出具或由买方集团选定的买方集团认证信息（可能包括用户名、密码、凭证、证书、接入码、密钥和个人识别码）仅供买方集团内部使用，买方集团不得出售、转让、披露或分许可该等认证信息给任何其他实体或个人，但买方集团可向代表买方集团履行工作的买方集团的代理和分包商披露买方集团认证信息。被许可方对买方集团认证信息的任何使用行为承担责任，并负责及时通知许可方任何对买方集团认证信息安全性的违反。就任何用户或任何其他个人或实体就本合同、买方集团信息、产品或服务采取的任何行为，在任何该等行为被买方集团允许、协助或促使的范围内由买方集团对该等行为负责。

9. SUPPLEMENTAL LIMITATIONS OF LIABILITY FOR SOFTWARE AND CYBER SECURITY. The following limitations of Licensor's liability are in addition to those set forth herein above and elsewhere in the Contract. To the extent they conflict, this Article 9 shall take precedence over the Terms and Conditions and any Addendums thereto with respect to Software, Third-Party Software and Cyber Security.

9. 软件和网络安全的责任的补充限制。除了上文以及本合同其他地方所规定的限制外，许可方的责任还有以下限制。如果出现冲突，则在冲突的范围内，就软件、第三方软件以及网络安全而言，本第9条应优先于条款和条件及其任何附录。

9.1. WITH REGARD TO SOFTWARE AND THIRD-PARTY SOFTWARE, IN NO EVENT SHALL SELLER GROUP'S TOTAL LIABILITY FOR ANY AND ALL CLAIMS OF ANY KIND, REGARDLESS OF CAUSE OR ACTION, ARISING OUT OF OR RELATED TO THE CONTRACT, OR ITS PERFORMANCE OR BREACH, INCLUDING WITHOUT LIMITATION WARRANTY AND TERMINATION, UNDER ANY CIRCUMSTANCES EXCEED THE LESSER OF THE LIMITS SET FORTH IN THE TERMS AND CONDITIONS OR THE LICENSE FEES PAID BY LICENSEE TO LICENSOR WITH RESPECT TO THE SOFTWARE AND THIRD-PARTY SOFTWARE GIVING RISE TO THE CLAIM WITHIN 90 DAYS PRECEDING THE EVENT GIVING RISE TO THE LIABILITY.

9.1 就软件和第三方软件而言，不论事由或行为，卖方集团本合同或其履行或违约产生的或与之相关的任何类型的任何及全部索赔的全部责任（包括但不限于质保及终止），在任何情况下均不得超过条款和条件规定的限额或被许可方在造成上述责任的事件发生前 90 日内就引起索赔的软件和第三方软件向许可方支付的许可费（以二者中较低的为准）。

9.2. Unless otherwise agreed by the parties in writing, the Licensee has sole responsibility for designing and implementing a solution that includes the Software and Products which will meet all appropriate requirements and/or standards. Licensor disclaims all liability for any damages arising as a result of any non-conformance of Licensee's solution to requirements and/or standards.

9.2. 除非双方另行书面约定，否则被许可方应独自负责制定和实施包含软件和产品解决方案，该方案应满足所有适当的要求和/或标准。许可方不就因被许可方的解决方案未满足要求和/或标准而引起的任何损害承担责任。

9.3. Licensee acknowledges that the Monitoring Software generates advisory information but does not perform any automated control, and Licensor has no control over decisions made or actions taken on the basis of any such generated information. Licensee assumes total responsibility for its use of the advisory information generated by the Monitoring Software. TO THE EXTENT THE SOFTWARE INCLUDES MONITORING SOFTWARE, LICENSEE BEARS THE ENTIRE RISK OF ANY LIABILITY ARISING OUT OF OR RELATING TO THE USE OF THE SOFTWARE.

9.3. 被许可方确认，监控软件可生成咨询性信息，但并不执行任何自动控制，且许可方无法控制依据该等信息作出的决策或采取的行动。被许可方就其

自身对监控软件生成的咨询性信息的使用承担全部责任。对包含监控软件的软件，被许可方就该软件的使用所引起的或与之相关的任何责任承担全部责任风险。

9.4. SELLER SHALL HAVE NO LIABILITY WHATSOEVER, WHETHER IN CONTRACT, WARRANTY, TORT (INCLUDING NEGLIGENCE), STRICT LIABILITY OR OTHERWISE, FOR (I) ANY DAMAGE (INCLUDING, BUT NOT LIMITED TO LOSS OF DATA AND VIRUSES) TO THE BUYER GROUP'S OR SITE OWNER'S NETWORK, NETWORK CONNECTIVITY, CONNECTIVITY DEVICES, ANY PRODUCTS OR EQUIPMENT, AND/OR SYSTEMS OR PART THEREOF; (II) ANY UNAUTHORIZED ACCESS BY THIRD PARTIES TO THE BUYER GROUP'S NETWORK; (III) ANY PRODUCTS, PARTS, SOFTWARE OR SERVICES THAT WERE NOT MANUFACTURED OR PERFORMED BY SELLER OR ITS AFFILIATES OR THAT HAVE BEEN ALTERED, MODIFIED, OR REVISED; (IV) THE COMBINATION, OPERATION, OR USE OF ANY PRODUCTS, PARTS, SOFTWARE OR SERVICES WITH OTHER PRODUCTS, EQUIPMENT OR SERVICES WHEN SUCH COMBINATION, OPERATION OR USE IS PART OF ANY VULNERABILITY; (V) FAILURE OF BUYER GROUP OR SITE OWNER TO PURCHASE OR IMPLEMENT ANY UPDATE OR UPGRADE PROVIDED BY SELLER GROUP THAT WOULD HAVE PREVENTED THE VULNERABILITY; (VI) UNAUTHORIZED USE OF PRODUCTS, PARTS, SOFTWARE, OR SERVICES, INCLUDING, WITHOUT LIMITATION, A BREACH OF THE PROVISIONS OF THE CONTRACT; OR (VII) PRODUCTS, PARTS, SOFTWARE OR SERVICES MADE OR PERFORMED TO BUYER GROUP'S OR SITE OWNER'S SPECIFICATIONS; DIRECTLY OR INDIRECTLY ATTRIBUTABLE (IN WHOLE OR PART) TO (A) THE BUYER GROUP'S OR SITE OWNER'S NETWORK'S OR CONNECTIVITY DEVICES VULNERABILITY; OR (B) ANY ACTION OR OMISSION OF THE BUYER GROUP OR SITE OWNER, ITS EMPLOYEES, CONSULTANTS, AGENTS, REPRESENTATIVES; OR (C) ANY ACTION OR OMISSION OF A THIRD PARTY (INCLUDING, BUT NOT LIMITED TO, HOSTILE NETWORK ATTACKS BY ANY THIRD PARTY).

9.4. 对于以下各项，如其直接或间接地（部分或全部）可归因于(A) 买方集团或现场所有方的网络或连接性设备之漏洞；或(B) 买方集团或现场所有方或前述任一方之员工、顾问、代理、代表的任何作为或不作为；或(C) 第三方的任何作为或不作为（包括但不限于任何第三方的恶意网络攻击），则卖方不承担任何责任，无论该责任是基于合同、保证、侵权（包括过失）、严格责任还是其他：(I) 对买方集团或现场所有方的网络、网络连接性、连接性设备、任何产品或设备、和/或系统或其部分所造成的损害（包括但不限于数据损失及病毒）；(II) 任何第三方未经授权访问买方集团网络的行为；(III) 非经卖方或其关联方制造或履行的任何产品、零部件、软件或服务，或已经被更改、修改或修订的任何产品、零部件、软件或服务；(IV) 任何产品、零部件、软件或服务与其他产品、设备或服务一起被组合、运行或使用，如该等组合、运行或使用是任何漏洞的一部分；(V) 买方集团或现场所有方未能购买或实施卖方集团提供的任何本可预防漏洞的更新或升级；(VI) 未经授权使用产品、零部件、软件或服务，包括但不限于对本合同条款的违反；或(VII) 根据买方集团或现场所有方的规格制造或履行的产品、零部件、软件或服务。